COMBINED SYNOPSIS/SOLICITATION FOR
1332KP26R0041 for Fairbanks Command and Data Acquisition Station
Operations and Maintenance Services

This is a combined synopsis/solicitation for commercial products or commercial services prepared in accordance with RFO Part 12. This announcement constitutes the only solicitation. Offers are being requested and a separate written solicitation will not be issued.

Solicitation number 1332KP26R0041 is issued as a request for proposal (RFP) for Fairbanks Command and Data Acquisition Station (FCDAS) for Operations and Maintenance Services. FCDAS is a National Critical Asset and, therefore, must remain in operation 24x7x365, including periods of inclement weather and emergencies such as natural and man-made disasters. Mission-essential functions must be maintained at all times, provided no serious hazards to personnel exist. Historically, FCDAS has been a Government-Owned, Contractor-Operated (GOCO) facility. This is a performance-based service contract, wherein the success of the O&M contractor depends on satisfaction of the technical requirements as well as responsiveness to continually evolving operational requirements and changes in technology.

FCDAS is NOAA's primary command and data acquisition facility for its polar-orbiting operational environmental satellites. The station also collaborates with other Government and international partners to provide routine and contingency support for non-NOAA polar-orbiting spacecraft. Each day, the station averages approximately 135 satellite contacts.

This acquisition *is* set-aside for 100% small business concerns. This solicitation incorporates provisions and clauses by reference. The full text of provisions and clauses may be accessed electronically at www.acquisition.gov.

The Government's points of contact for this requirement are Andrea Chiodi, Contract Specialist at andrea.chiodi@noaa.gov and Jame Chang, Contracting Officer at jame.chang@noaa.gov.

The Offeror's Proposal shall be submitted no later than**: 2:00 PM Eastern Time (ET) Monday, November 9, 2026**.

It is the Offeror's responsibility to bring to the Government's attention any perceived ambiguities, discrepancies, or inconsistencies within the solicitation package (i.e. this document, attachments, and any document incorporated by reference). This notification, as well as any request for deviation of any term or condition provided herein, and questions concerning this RFP, shall be submitted no later than**: 3:00 PM ET on Friday, October 23, 2026** to the Contract Specialist and Contracting Officer via email and shall reference the RFP number and the applicable attachment and/or section in question.

Attachment J-12, Questions and Comments Template. Any responses to questions will be made in writing, without identification of the questioner. Phone inquiries are not permitted.

SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

NOTE: OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, AND 30.

1. REQUISITION NUMBER

2. CONTRACT NUMBER	3.AWARD/EFFECTIVE DATE	4. ORDER NUMBER	5. SOLICITATION NUMBER	6. SOLICITATION ISSUE DATE
			1332KP26R0041	10/15/2026

7. FOR SOLICITATION INFORMATION CALL:	a. NAME	b. TELEPHONE NUMBER *(No collect calls)*	8. OFFER DUE DATE/ LOCAL TIME
	ANDREA CHIODI		11/09/2026 1400 ET

9. ISSUED BY CODE SIAD-WHITE

SIAD-WHITE
1325 EAST WEST HWY
SSMC2, 11th FLOOR
SILVER SPRING MD 20910

10. THIS ACQUISITION IS ☐ UNRESTRICTED OR ☒ SET ASIDE: 100.00 % FOR:

- ☒ SMALL BUSINESS
- ☐ HUBZONE SMALL BUSINESS
- ☐ SERVICE-DISABLED VETERAN-OWNED SMALL BUSINESS (SDVOSB)
- ☐ WOMEN-OWNED SMALL BUSINESS (WOSB)
- ☐ ECONOMICALLY DISADVANTAGED WOMEN-OWNED SMALL BUSINESS (EDWOSB)
- ☐ 8(A)

NORTH AMERICAN INDUSTRY CLASSIFICATION STANDARD (NAICS): 561210

SIZE STANDARD: $47

11. DELIVERY FOR FREE ON BOARD (FOB) DESTINATION UNLESS BLOCK IS MARKED	12. DISCOUNT TERMS	13a. THIS CONTRACT IS A RATED ORDER UNDER THE DEFENSE PRIORITIES AND ALLOCATIONS SYSTEM - DPAS (15 CFR 700)	13b. RATING / 14. METHOD OF SOLICITATION
☒ SEE SCHEDULE		☐	☐ REQUEST FOR QUOTE (RFQ) ☐ INVITATION FOR BID (IFB) ☒ REQUEST FOR PROPOSAL (RFP)

15. DELIVER TO CODE EB300031

USDOC/NOAA/NESDIS/FCDAS
1300 EISELE ROAD
FAIRBANKS AK 99712

16. ADMINISTERED BY CODE SIAD-WHITE

SIAD-WHITE
1325 EAST WEST HWY
SSMC2, 11th FLOOR
SILVER SPRING MD 20910

17a. CONTRACTOR/ OFFEROR CODE ____ FACILITY CODE ____

TELEPHONE NUMBER

18a. PAYMENT WILL BE MADE BY CODE ____

☐ 17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER

18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM

19. ITEM NO.	20. SCHEDULE OF SUPPLIES/SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT
	Period of Performance: 06/01/2027 to 05/31/2028				
0001	Base Period _ FCDAS O&M (FFP) Product/Service Code: DG11 Continued...				
	(Use Reverse and/or Attach Additional Sheets as Necessary)				

25. ACCOUNTING AND APPROPRIATION DATA

26. TOTAL AWARD AMOUNT *(For Government Use Only)*

☐ 27a. SOLICITATION INCORPORATES BY REFERENCE (FEDERAL ACQUISITION REGULATION) FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDENDA ☐ ARE ☐ ARE NOT ATTACHED

☐ 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA ☐ ARE ☐ ARE NOT ATTACHED

☐ 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN ____ COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED

☐ 29. AWARD OF CONTRACT: REFERENCE ____ OFFER DATED. ____. YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS:

30a. SIGNATURE OF OFFEROR/CONTRACTOR

31a. UNITED STATES OF AMERICA *(SIGNATURE OF CONTRACTING OFFICER)*

30b. NAME AND TITLE OF SIGNER *(Type or print)*	30c. DATE SIGNED	31b. NAME OF CONTRACTING OFFICER *(Type or print)*	31c. DATE SIGNED
		JAME CHANG	

19. ITEM NO.	20. SCHEDULE OF SUPPLIES/SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT
	Product/Service Description: IT AND TELECOM - NETWORK: TELECOM ACCESS SERVICES Delivery: 05/31/2028				
0002	Base Period _ Skilled Trades - Option CLIN (FFP) (Option Line Item) Product/Service Code: DG11 Product/Service Description: IT AND TELECOM - NETWORK: TELECOM ACCESS SERVICES Delivery: 05/31/2028				
0003	Base Period _ Information Technology - Option CLIN (FFP) (Option Line Item) Product/Service Code: DG11 Product/Service Description: IT AND TELECOM - NETWORK: TELECOM ACCESS SERVICES Delivery: 05/31/2028				
0004	Base Period _ Site Support - Option CLIN (FFP) (Option Line Item) Product/Service Code: DG11 Product/Service Description: IT AND TELECOM - NETWORK: TELECOM ACCESS SERVICES Delivery: 05/31/2028				

Continued...

32a. QUANTITY IN COLUMN 21 HAS BEEN

☐ RECEIVED ☐ INSPECTED ☐ ACCEPTED, AND CONFORMS TO THE CONTRACT, EXCEPT AS NOTED: _____

32b. SIGNATURE OF AUTHORIZED GOVERNMENT REPRESENTATIVE	32c. DATE	32d. PRINTED NAME AND TITLE OF AUTHORIZED GOVERNMENT REPRESENTATIVE

32e. MAILING ADDRESS OF AUTHORIZED GOVERNMENT REPRESENTATIVE	32f. TELEPHONE NUMBER OF AUTHORIZED GOVERNMENT REPRESENTATIVE 32g. EMAIL OF AUTHORIZED GOVERNMENT REPRESENTATIVE

33. SHIP NUMBER ☐ PARTIAL ☐ FINAL	34. VOUCHER NUMBER	35. AMOUNT VERIFIED CORRECT FOR	36. PAYMENT ☐ COMPLETE ☐ PARTIAL ☐ FINAL	37. CHECK NUMBER

STOCK RECORD (S/R)		40. PAID BY
38. S/R ACCOUNT NUMBER	39. S/R VOUCHER NUMBER	

41a. I CERTIFY THIS ACCOUNT IS CORRECT AND PROPER FOR PAYMENT		42a. RECEIVED BY *(Print)*	
41b. SIGNATURE AND TITLE OF CERTIFYING OFFICER	41c. DATE	42b. RECEIVED AT *(Location)*	
		42c. DATE RECEIVED *(MM/DD/YYYY)*	42d. TOTAL CONTAINERS

ITEM NO. (A)	SUPPLIES/SERVICES (B)	QUANTITY (C)	UNIT (D)	UNIT PRICE (E)	AMOUNT (F)
0005	Base Period _ Security - Option CLIN (FFP) (Option Line Item) Product/Service Code: DG11 Product/Service Description: IT AND TELECOM - NETWORK: TELECOM ACCESS SERVICES Delivery: 05/31/2028				
0006	Base Period _ Operations - Option CLIN (FFP) (Option Line Item) Product/Service Code: DG11 Product/Service Description: IT AND TELECOM - NETWORK: TELECOM ACCESS SERVICES Delivery: 05/31/2028				
0007	Base Period _ Other Direct Cost - Option CLIN (T&M) (Option Line Item) Product/Service Code: DG11 Product/Service Description: IT AND TELECOM - NETWORK: TELECOM ACCESS SERVICES Delivery: 05/31/2028				
0008	Base Period _ Government Directed Overtime - Option CLIN (T&M) (Option Line Item) Product/Service Code: DG11 Product/Service Description: IT AND TELECOM - NETWORK: TELECOM ACCESS SERVICES Delivery: 05/31/2028				
0100	Transition Phase (FFP) Product/Service Code: DG11 Product/Service Description: IT AND TELECOM - NETWORK: TELECOM ACCESS SERVICES Delivery: 05/31/2027 Period of Performance: 05/01/2027 to 05/31/2027				
1001	Option Period I _ FCDAS O&M (FFP) (Option Line Item) Product/Service Code: DG11 Product/Service Description: IT AND TELECOM - NETWORK: TELECOM ACCESS SERVICES Continued...				

ITEM NO. (A)	SUPPLIES/SERVICES (B)	QUANTITY (C)	UNIT (D)	UNIT PRICE (E)	AMOUNT (F)
	Delivery: 05/31/2029 Period of Performance: 06/01/2028 to 05/31/2029				
1002	Option Period I _ Skilled Trades - Option CLIN (FFP) (Option Line Item) Product/Service Code: DG11 Product/Service Description: IT AND TELECOM - NETWORK: TELECOM ACCESS SERVICES Delivery: 05/31/2029 Period of Performance: 06/01/2028 to 05/31/2029				
1003	Option Period I _ Information Technology - Option CLIN (FFP) (Option Line Item) Product/Service Code: DG11 Product/Service Description: IT AND TELECOM - NETWORK: TELECOM ACCESS SERVICES Delivery: 05/31/2029 Period of Performance: 06/01/2028 to 05/31/2029				
1004	Option Period I _ Site Support - Option CLIN (FFP) (Option Line Item) Product/Service Code: DG11 Product/Service Description: IT AND TELECOM - NETWORK: TELECOM ACCESS SERVICES Delivery: 05/31/2029 Period of Performance: 06/01/2028 to 05/31/2029				
1005	Option Period I _ Security - Option CLIN (FFP) (Option Line Item) Product/Service Code: DG11 Product/Service Description: IT AND TELECOM - NETWORK: TELECOM ACCESS SERVICES Delivery: 05/31/2029 Period of Performance: 06/01/2028 to 05/31/2029				

Continued...

ITEM NO. (A)	SUPPLIES/SERVICES (B)	QUANTITY (C)	UNIT (D)	UNIT PRICE (E)	AMOUNT (F)
1006	Option Period I _ Operations - Option CLIN (FFP) (Option Line Item) Product/Service Code: DG11 Product/Service Description: IT AND TELECOM - NETWORK: TELECOM ACCESS SERVICES Delivery: 05/31/2029 Period of Performance: 06/01/2028 to 05/31/2029				
1007	Option Period I _ Other Direct Cost - Option CLIN (T&M) (Option Line Item) Product/Service Code: DG11 Product/Service Description: IT AND TELECOM - NETWORK: TELECOM ACCESS SERVICES Delivery: 05/31/2029 Period of Performance: 06/01/2028 to 05/31/2029				
1008	Option Period I _ Government Directed Overtime - Option CLIN (T&M) (Option Line Item) Product/Service Code: DG11 Product/Service Description: IT AND TELECOM - NETWORK: TELECOM ACCESS SERVICES Delivery: 05/31/2029 Period of Performance: 06/01/2028 to 05/31/2029				
2001	Option Period II _ FCDAS O&M (FFP) (Option Line Item) Product/Service Code: DG11 Product/Service Description: IT AND TELECOM - NETWORK: TELECOM ACCESS SERVICES Delivery: 05/31/2030 Period of Performance: 06/01/2029 to 05/31/2030				
2002	Option Period II _ Skilled Trades - Option CLIN (FFP) (Option Line Item) Product/Service Code: DG11 Product/Service Description: IT AND TELECOM - Continued...				

ITEM NO. (A)	SUPPLIES/SERVICES (B)	QUANTITY (C)	UNIT (D)	UNIT PRICE (E)	AMOUNT (F)
	NETWORK: TELECOM ACCESS SERVICES Delivery: 05/31/2030 Period of Performance: 06/01/2029 to 05/31/2030				
2003	Option Period II _ Information Technology - Option CLIN (FFP) (Option Line Item) Product/Service Code: DG11 Product/Service Description: IT AND TELECOM - NETWORK: TELECOM ACCESS SERVICES Delivery: 05/31/2030 Period of Performance: 06/01/2029 to 05/31/2030				
2004	Option Period II _ Site Support - Option CLIN (FFP) (Option Line Item) Product/Service Code: DG11 Product/Service Description: IT AND TELECOM - NETWORK: TELECOM ACCESS SERVICES Delivery: 05/31/2030 Period of Performance: 06/01/2029 to 05/31/2030				
2005	Option Period II _ Security - Option CLIN (FFP) (Option Line Item) Product/Service Code: DG11 Product/Service Description: IT AND TELECOM - NETWORK: TELECOM ACCESS SERVICES Delivery: 05/31/2030 Period of Performance: 06/01/2029 to 05/31/2030				
2006	Option Period II _ Operations - Option CLIN (FFP) (Option Line Item) Product/Service Code: DG11 Product/Service Description: IT AND TELECOM - NETWORK: TELECOM ACCESS SERVICES Delivery: 05/31/2030 Period of Performance: 06/01/2029 to Continued...				

ITEM NO. (A)	SUPPLIES/SERVICES (B)	QUANTITY (C)	UNIT (D)	UNIT PRICE (E)	AMOUNT (F)
	05/31/2030				
2007	Option Period II _ Other Direct Cost - Option CLIN (T&M) (Option Line Item) Product/Service Code: DG11 Product/Service Description: IT AND TELECOM - NETWORK: TELECOM ACCESS SERVICES Delivery: 05/31/2030 Period of Performance: 06/01/2029 to 05/31/2030				
2008	Option Period II _ Government Directed Overtime - Option CLIN (T&M) (Option Line Item) Product/Service Code: DG11 Product/Service Description: IT AND TELECOM - NETWORK: TELECOM ACCESS SERVICES Delivery: 05/31/2030 Period of Performance: 06/01/2029 to 05/31/2030				
3001	Option Period III _ FCDAS O&M (FFP) (Option Line Item) Product/Service Code: DG11 Product/Service Description: IT AND TELECOM - NETWORK: TELECOM ACCESS SERVICES Delivery: 05/31/2031 Period of Performance: 06/01/2030 to 05/31/2031				
3002	Option Period III _ Skilled Trades - Option CLIN (FFP) (Option Line Item) Product/Service Code: DG11 Product/Service Description: IT AND TELECOM - NETWORK: TELECOM ACCESS SERVICES Delivery: 05/31/2031 Period of Performance: 06/01/2030 to 05/31/2031				
3003	Option Period III _ Information Technology - Option CLIN (FFP) (Option Line Item) Continued...				

ITEM NO. (A)	SUPPLIES/SERVICES (B)	QUANTITY (C)	UNIT (D)	UNIT PRICE (E)	AMOUNT (F)
	Product/Service Code: DG11 Product/Service Description: IT AND TELECOM - NETWORK: TELECOM ACCESS SERVICES Delivery: 05/31/2031 Period of Performance: 06/01/2030 to 05/31/2031				
3004	Option Period III _ Site Support - Option CLIN (FFP) (Option Line Item) Product/Service Code: DG11 Product/Service Description: IT AND TELECOM - NETWORK: TELECOM ACCESS SERVICES Delivery: 05/31/2031 Period of Performance: 06/01/2030 to 05/31/2031				
3005	Option Period III _ Security - Option CLIN (FFP) (Option Line Item) Product/Service Code: DG11 Product/Service Description: IT AND TELECOM - NETWORK: TELECOM ACCESS SERVICES Delivery: 05/31/2031 Period of Performance: 06/01/2030 to 05/31/2031				
3006	Option Period III _ Operations - Option CLIN (FFP) (Option Line Item) Product/Service Code: DG11 Product/Service Description: IT AND TELECOM - NETWORK: TELECOM ACCESS SERVICES Delivery: 05/31/2031 Period of Performance: 06/01/2030 to 05/31/2031				
3007	Option Period III _ Other Direct Cost - Option CLIN (T&M) (Option Line Item) Product/Service Code: DG11 Product/Service Description: IT AND TELECOM - NETWORK: TELECOM ACCESS SERVICES				

Continued...

ITEM NO. (A)	SUPPLIES/SERVICES (B)	QUANTITY (C)	UNIT (D)	UNIT PRICE (E)	AMOUNT (F)
	Delivery: 05/31/2031 Period of Performance: 06/01/2030 to 05/31/2031				
3008	Option Period III _ Government Directed Overtime - Option CLIN (T&M) (Option Line Item) Product/Service Code: DG11 Product/Service Description: IT AND TELECOM - NETWORK: TELECOM ACCESS SERVICES Delivery: 05/31/2031 Period of Performance: 06/01/2030 to 05/31/2031				
4001	Option Period IV _ FCDAS O&M (FFP) (Option Line Item) Product/Service Code: DG11 Product/Service Description: IT AND TELECOM - NETWORK: TELECOM ACCESS SERVICES Delivery: 05/31/2032 Period of Performance: 06/01/2031 to 05/31/2032				
4002	Option Period IV _ Skilled Trades - Option CLIN (FFP) (Option Line Item) Product/Service Code: DG11 Product/Service Description: IT AND TELECOM - NETWORK: TELECOM ACCESS SERVICES Delivery: 05/31/2032 Period of Performance: 06/01/2031 to 05/31/2032				
4003	Option Period IV _ Information Technology - Option CLIN (FFP) (Option Line Item) Product/Service Code: DG11 Product/Service Description: IT AND TELECOM - NETWORK: TELECOM ACCESS SERVICES Delivery: 05/31/2032 Period of Performance: 06/01/2031 to 05/31/2032				
4004	Option Period IV _ Site Support - Option CLIN Continued...				

ITEM NO. (A)	SUPPLIES/SERVICES (B)	QUANTITY (C)	UNIT (D)	UNIT PRICE (E)	AMOUNT (F)
	(FFP) (Option Line Item) Product/Service Code: DG11 Product/Service Description: IT AND TELECOM - NETWORK: TELECOM ACCESS SERVICES Delivery: 05/31/2032 Period of Performance: 06/01/2031 to 05/31/2032				
4005	Option Period IV _ Security - Option CLIN (FFP) (Option Line Item) Product/Service Code: DG11 Product/Service Description: IT AND TELECOM - NETWORK: TELECOM ACCESS SERVICES Delivery: 05/31/2032 Period of Performance: 06/01/2031 to 05/31/2032				
4006	Option Period IV _ Operations - Option CLIN (FFP) (Option Line Item) Product/Service Code: DG11 Product/Service Description: IT AND TELECOM - NETWORK: TELECOM ACCESS SERVICES Delivery: 05/31/2032 Period of Performance: 06/01/2031 to 05/31/2032				
4007	Option Period IV _ Other Direct Cost - Option CLIN (T&M) (Option Line Item) Product/Service Code: DG11 Product/Service Description: IT AND TELECOM - NETWORK: TELECOM ACCESS SERVICES Delivery: 05/31/2032 Period of Performance: 06/01/2031 to 05/31/2032				
4008	Option Period IV _ Government Directed Overtime - Option CLIN (T&M) (Option Line Item) Product/Service Code: DG11 Product/Service Description: IT AND TELECOM - Continued...				

ITEM NO. (A)	SUPPLIES/SERVICES (B)	QUANTITY (C)	UNIT (D)	UNIT PRICE (E)	AMOUNT (F)
	NETWORK: TELECOM ACCESS SERVICES Delivery: 05/31/2032 Period of Performance: 06/01/2031 to 05/31/2032				

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Section B - Supplies or Services/Prices

CAR 1352.216-77 Ceiling price. (APR 2010)

The ceiling price of this contract is $TBD at Award. The contractor shall not make expenditures nor incur obligations in the performance of this contract which exceed the ceiling price specified herein, except at the contractor's own risk.

(End of clause)

B.1 CAR CLAUSES AND NAM CONTRACT LANGUAGE

CAR clauses and NAM contract language are provided below:

NOAA Acquisition Manual 1330-52.232-70 NOAA LIMITATION OF FUNDS ON TIME-AND-MATERIALS AND LABOR-HOUR CONTRACTS (MAY 2015)

It is estimated that the total cost to the Government for the performance of this contract shall not exceed the ceiling price of TBA at Award. Funds in the amount of TBD at award are hereby allotted. The balance of this contract's estimated ceiling will be allotted upon availability of funds through a unilateral modification(s).

(a) The parties estimate that performance of this contract will not cost the Government more than the ceiling amount specified in the contract. The contractor agrees to use its best efforts to perform the work specified in the Schedule and all obligations under this contract within the ceiling amount.

(b) The Schedule specifies the amount of funds presently available for payment by the Government and allotted to this contract as well as the items covered. The parties contemplate that the Government will allot additional funds incrementally to the contract up to the full estimated cost to the Government specified in the Schedule, provided that funds become available. The contractor agrees to perform work on the contract up to the point at which the total amount paid and payable by the Government under the contract approximates but does not exceed the total amount actually allotted by the Government to the contract.

(c) The contractor shall notify the contracting officer in writing whenever it has reason to believe that the costs it expects to incur under this contract in the next 60 days, when added to all costs previously incurred, will exceed 85% of the total funded amount so far allotted to the contract by the Government. The notice shall state the additional funds required to continue performance for the period specified in the Schedule.

(d) Except as required by other provisions of this contract, specifically citing and stated to be an exception to this solicitation and contract language –

1. The Government is not obligated to reimburse the contractor for costs incurred in excess of the total amount allotted by the Government to this contract; and

2. The contractor is not obligated to continue performance under this contract or otherwise incur costs in excess of the amount then allotted to the contract by the Government until the contracting officer notifies the contractor in writing that the amount allotted by the Government has been increased and

specifies an increased amount, which shall then constitute the total amount allotted by the Government to this contract.

(e) Change orders shall not be considered an authorization to exceed the amount allotted by the Government specified in the Schedule, unless they contain a statement increasing the amount allotted.

(f) Nothing in this language shall affect the right of the Government to terminate this contract. If this contract is terminated, the Government and the contractor shall negotiate an equitable distribution of all property produced or purchased under the contract, based upon the share of costs incurred by each.

(End of solicitation and contract language)

Section C - Description/Specifications

C.1 Performance Work Statement

The Contractor shall provide the services set forth in the Performance Work Statement and the attachments referenced in Section J, List of Attachments, in accordance with the provisions and clauses included in the solicitation and contract and any subsequent amendments and modifications thereto.

- END OF SECTION C -

Section D - Packaging and Marking

D.1 PACKAGING AND MARKING

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(End of Section D)

Section E - Inspection and Acceptance

E.1 CAR Clauses

CAR clauses are provided below:

CAR 1352.246-70 Place of acceptance. (APR 2010)

(a) The Contracting Officer or the duly authorized representative will accept supplies and services to be provided under this contract.

(b) The place of acceptance will be:

NOAA/NESDIS Fairbanks Command and Data Acquisition Station
1300 Eisele Road
Fairbanks, AK 99712-1725

(End of clause)

Section F - Deliveries or Performance

F.1 CAR and NAM CONTRACT LANGUAGE

CAR clauses and NAM contract language are provided below:

CAR 1352.270-70 Period of performance. (APR 2010)

(a) The base period of performance of this contract is from June 1, 2027 through May 31, 2028. If an option is exercised, the period of performance shall be extended through the end of that option period.

(b) The option periods that may be exercised are as follows:

Option Period I: June 1, 2028 through May 31, 2029
Option Period II: June 1, 2029 through May 31, 2030
Option Period III: June 1, 2030 through May 31, 2031
Option Period IV: June 1, 2031 through May 31, 2032

(c) The notice requirements for unilateral exercise of option periods are set out in FAR 52.217-9.

(End of clause)

NOAA Acquisition Manual 1330-52.215-70 SCHEDULE OF DELIVERABLES (SEPT 2005)

The following is a schedule of all deliverables, including administrative deliverables, required during the period of performance of this contract:

Item Description Quantity Due Date Deliver to Reference

See Attachment J-1 Performance Work Statement, Appendix E

(End of solicitation and contract language)

Section G - Contract Administration Data

G.1 Exercise of Optional Support Contract Line Item Number (CLINs)

The Government may require additional support of the numbered line items x002, x003, x004, x005, x006, x007 and x008, identified in the Schedule as an Option CLIN at the price stated in the Schedule. The Contracting Officer may exercise the option by written notice to the Contractor within 15 calendar days. The provision of these services shall continue at the same rate that like items are called for under the contract, unless the parties otherwise agree.

G.2 Position Vacancy and Invoicing

Position Vacancy and Invoicing. In the event any position designated under this Contract becomes vacant, the Contractor shall have a grace period of fifteen (15) calendar days to fill the vacancy. If the position remains unfilled for more than fifteen (15) calendar days, the Contractor shall not invoice, and the Government is not be liable to pay, for that position commencing on the sixteenth (16th) calendar day of the vacancy. Standard invoicing for the position may resume only on the date a qualified replacement officially commences work. Any invoices submitted for the vacant position will be rejected by the Government for revision.

G.3 CAR CLAUSES and NAM CONTRACT LANGUAGE

CAR clauses and NAM Contract language are provided below:

CAR 1352.201-70 Contracting Officer's Authority. (MAR 2010)

The Contracting Officer is the only person authorized to make or approve any changes in any of the requirements of this contract, and, notwithstanding any provisions contained elsewhere in this contract, the said authority remains solely in the Contracting Officer. In the event the contractor makes any changes at the direction of any person other than the Contracting Officer, the change will be considered to have been made without authority and no adjustment will be made in the contract terms and conditions, including price.

(End of clause)

CAR 1352.201-72 Contracting Officer's Representative (COR). (APR 2010)

(a) TBD at Award is hereby designated as the Contracting Officer's Representative (COR). The COR may be changed at any time by the Government without prior notice to the contractor by a unilateral modification to the contract. The COR is located at:

TBD at Award

Phone Number: TBD at Award

E-mail: TBD at Award

(b) The responsibilities and limitations of the COR are as follows:

(1) The COR is responsible for the technical aspects of the contract and serves as technical liaison with the contractor. The COR is also responsible for the final inspection and acceptance of all deliverables and such other responsibilities as may be specified in the contract.

(2) The COR is not authorized to make any commitments or otherwise obligate the Government or authorize any changes which affect the contract price, terms or conditions. Any contractor request for changes shall be referred to the Contracting Officer directly or through the COR. No such changes shall be made without the express written prior authorization of the Contracting Officer. The Contracting Officer may designate assistant or alternate COR(s) to act for the COR by naming such assistant/alternate(s) in writing and transmitting a copy of such designation to the contractor.

(End of clause)

CAR 1352.245-70 Government furnished property. (APR 2010)

The Government will provide the following item(s) of Government property to the contractor. The contractor shall be accountable for, and have stewardship of, the property in the performance of this contract. This property shall be used and maintained by the contractor in accordance with provisions of the "Government Property" clause included in this contract.

The Government Furnished Property list is attached as Section J, Attachment J-9.

(End of clause)

NOAA Acquisition Manual 1330-52.232-71 ELECTRONIC SUBMISSION OF PAYMENT REQUESTS (FEB 2023)

The Contractor must submit payment requests electronically through the U.S. Department of the Treasury's Invoice Processing Platform System (IPP). The Contractor must use the IPP website to register, access, and submit payment requests. The IPP website address is https://www.ipp.gov.

"Payment request" means any request for contract financing payment or invoice payment to the Contractor. To be considered proper, invoices must be prepared in accordance with, and contain all elements specified in, the contract payment clause (e.g., FAR 52.212-4(g), FAR 52.232-25(a)(3), FAR 52.232-26(a)(2), FAR 52.232-27(a)(2)).

The Contractor must include the following documents as attachments to payment requests submitted through the IPP: None.

If the Contractor is unable to comply with the requirement to submit payment requests through the IPP due to a threat to national security; a matter of unusual or compelling urgency; or because the political, financial, or communications infrastructure of a foreign country does not support access to the IPP, the Contractor must request an exception in writing. Contact the Contracting Officer for more information about requesting an exception.

(End of solicitation and contract language)

Section H - Special Contract Requirements

CAR 1352.209-72 Restrictions against disclosure. (APR 2010)

CAR 1352.209-73 Compliance with the laws. (APR 2010)

CAR 1352.209-74 Organizational conflict of interest. (APR 2010)

CAR 1352.228-72 Deductibles under required insurance coverage-fixed price. (APR 2010)

CAR 1352.231-71 Duplication of effort. (APR 2010)

CAR 1352.237-70 Security processing requirements-high or moderate risk contracts. (APR 2010)

CAR 1352.237-72 Security processing requirements-national security contracts. (APR 2010)

CAR 1352.237-73 Foreign national visitor and guest access to departmental resources. (APR 2010)

(a) The contractor shall comply with the provisions of Department Administrative Order 207-12, Foreign National Visitor and Guest Access Program; Bureau of Industry and Security Export Administrative Regulations Part 734, and [insert operating unit counsel specific procedures]. The contractor shall provide the Government with notice of foreign nationals requiring access to any Department of Commerce facility or through a Department of Commerce IT system.

(b) The contractor shall identify each foreign national who requires access to any Departmental resources, and shall provide all requested information in writing to the Contracting Officer's Representative.

(c) The contractor shall include the substance of this clause, including this paragraph, in all subcontracts.

(End of clause)

CAR 1352.239-72 Security requirements for information technology resources. (APR 2010)

(a) *Applicability*. This clause is applicable to all contracts that require contractor electronic access to Department of Commerce sensitive non-national security or national security information contained in systems, or administrative control of systems by a contractor that process or store information that directly supports the mission of the Agency.

(b) *Definitions*. For purposes of this clause, the term "Sensitive" is defined by the guidance set forth in the Computer Security Act of 1987 (Pub. L. 100-235), including the following definition of the term:

(1) Sensitive information is " * * * any information, the loss, misuse, or unauthorized access to, or modification of which could adversely affect the national interest or the, conduct of Federal programs, or the privacy to which individuals are entitled under section 552a of title 5, United States Code (The Privacy Act), but which has not been specifically authorized under criteria established by an Executive Order or an Act of Congress to be kept secret in the interest of national defense or foreign policy."

(2) For purposes of this clause, the term "National Security" is defined by the guidance set forth in:

(i) The DOC IT Security Program Policy and Minimum Implementation Standards, Section 4.3.

(ii) The DOC Security Manual, Chapter 18.

(iii) Executive Order 12958, as amended, Classified National Security Information. Classified or national security information is information that has been specifically authorized to be protected from unauthorized disclosure in the interest of national defense or foreign policy under an Executive Order or Act of Congress.

(3) Information technology resources include, but are not limited to, hardware, application software, system software, and information (data). Information technology services include, but are not limited to, the management, operation (including input, processing, transmission, and output), maintenance, programming, and system administration of computer systems, networks, and telecommunications systems.

(c) The contractor shall be responsible for implementing sufficient Information Technology security, to reasonably prevent the compromise of DOC IT resources for all of the contractor's systems that are interconnected with a DOC network or DOC systems that are operated by the contractor.

(d) All contractor personnel performing under this contract and contractor equipment used to process or store DOC data, or to connect to DOC networks, must comply with the requirements contained in the DOC *Information Technology Management Handbook* (*see* DOC, Office of the Chief Information Officer Web site), or equivalent/more specific agency or operating unit counsel guidance as specified immediately hereafter [insert agency or operating unit counsel specific guidance, if applicable].

(e) Contractor personnel requiring a user account for access to systems operated by the contractor for DOC or interconnected to a DOC network to perform contract services shall be screened at an appropriate level in accordance with Commerce Acquisition Manual 1337.70, *Security Processing Requirements for Service Contracts*.

(f) Within 5 days after contract award, the contractor shall certify in writing to the COR that its employees, in performance of the contract, have completed initial IT security orientation training in DOC IT Security policies, procedures, computer ethics, and best practices, in accordance with *DOC IT Security Program Policy*, chapter 15, section 15.3. The COR will inform the contractor of any other available DOC training resources. Annually thereafter the contractor shall certify in writing to the COR that its employees, in performance of the contract, have completed annual refresher training as required by section 15.4 of the *DOC IT Security Program Policy*.

(g) Within 5 days of contract award, the contractor shall provide the COR with signed acknowledgement of the provisions as contained in Commerce Acquisition Regulation (CAR), 1352.209-72, *Restrictions Against Disclosures*.

(h) The contractor shall afford DOC, including the Office of Inspector General, access to the contractor's and subcontractor's facilities, installations, operations, documentation, databases, and personnel used in performance of the contract. Access shall be provided to the extent required to carry out a program of IT inspection, investigation, and audit to safeguard against threats and hazards to the integrity, availability, and confidentiality of DOC data or to the function of computer systems operated on behalf of DOC, and to preserve evidence of computer crime.

(i) For all contractor-owned systems for which performance of the contract requires interconnection with a DOC network on which DOC data will be stored or processed, the contractor shall provide, implement, and maintain a System Accreditation Package in accordance with the *DOC IT Security Program Policy*. Specifically, the contractor shall:

(1) Within 14 days after contract award, submit for DOC approval a System Certification Work Plan, including project management information (at a minimum the tasks, resources, and milestones) for the certification effort, in accordance with *DOC IT Security Program Policy* and [Insert agency or operating unit counsel specific guidance, if applicable]. The Certification Work Plan, approved by the COR, in consultation with the DOC IT Security Officer, or Agency/operating unit counsel IT Security Manager/Officer, shall be incorporated as part of the contract and used by the COR to monitor performance of certification activities by the contractor of the system that will process DOC data or connect to DOC networks. Failure to submit and receive approval of the Certification Work Plan may result in termination of the contract.

(2) Upon approval, follow the work plan schedule to complete system certification activities in accordance with DOC *IT Security Program Policy* Section 6.2, and provide the COR with the completed System Security Plan and Certification Documentation Package portions of the System Accreditation Package for approval and system accreditation by an appointed DOC official.

(3) Upon receipt of the Security Assessment Report and Authorizing Official's written accreditation decision from the COR, maintain the approved level of system security as documented in the Security Accreditation Package, and assist the COR in annual assessments of control effectiveness in accordance with DOC *IT Security Program Policy*, Section 6.3.1.1.

(j) The contractor shall incorporate this clause in all subcontracts that meet the conditions in paragraph (a) of this clause.

(End of clause)

Observance of Legal Holidays and Excused Absence

a) The government hereby provides notification that government personnel observe the following listed days as holidays:

(1) New Year's Day;
(2) Martin Luther King's Birthday;

(3) President's Day;
(4) Memorial Day;
(5) Juneteenth;
(6) Independence Day;
(7) Labor Day;
(8) Columbus Day;
(9) Veterans' Day;
(10) Thanksgiving Day; and
(11) Christmas Day.

(b) The government observes the following days in addition to the days designated as holidays:

(1) Any other day designated by Federal Statute;
(2) Any other day designated by Executive Order; and
(3) Any other day designated by the President's Proclamation.

(c) It is understood and agreed between the Government and the Contractor that observance of such days by Government personnel shall not otherwise be a reason for an additional period of performance, or entitlement of compensation except as set forth within the contract. In the event the Contractor's personnel are authorized by the Government to work during the holiday at a Government site, they may be reimbursed by the Contractor; however, no form of holiday or other premium compensation will be reimbursed either as a direct or indirect cost, other than their normal compensation for the time worked. This provision does not preclude reimbursement for authorized overtime work if applicable to this contract.

(d) When the Federal entities grant excused absence to its employees, the Contractor agrees to continue to provide sufficient personnel at a Government site to perform critical tasks already in operation or scheduled, and shall be guided by the instructions issued by the Contracting Officer, COR or ACOR.

(e) If Government personnel are furloughed, the Contractor shall contact the Contracting Officer, COR or ACOR to receive direction. It is the Government's decision as to whether the contract price/cost will be affected. Generally, the following situations apply:

1. Contractor personnel that are able to continue contract performance (either on-site or at a site other than their normal work station), shall continue to work and the contract price shall not be Reduced or increased.
2. Contractor personnel that are not able to continue contract performance (e.g., support functions), may be asked to cease their work effort.

(f) In those situations that Government personnel are furloughed, the Contractor may not invoice for their employees working during the Government furlough, until such time as any special legislation affecting Government personnel is signed into law.

(g) Nothing in this clause abrogates the rights and responsibilities of the parties relating to stop work provisions as cited in other sections of this contract.

CAR 1352.228-70 Insurance coverage. (APR 2010)

(a) Workers Compensation and Employer's Liability. The contractor is required to comply with applicable Federal and State workers' compensation and occupational disease statutes. If occupational diseases are not compensable under those statutes, they shall be covered under the employer's liability section of the insurance policy, except when contract operations are so commingled with a contractor's commercial operations that it would not be practical to require this coverage. Employer's liability coverage of at least $100,000 shall be required, except in states with exclusive or monopolistic funds that do not permit workers' compensation to be written by private carriers.

(b) General liability. (1) The contractor shall have bodily injury liability insurance coverage written on the comprehensive form of policy of at least $500,000 per occurrence.

(2) When special circumstances apply in accordance with FAR 28.307-2(b), Property Damage Liability Insurance shall be required in the amount of $0.00.

(c) Automobile liability. The contractor shall have automobile liability insurance written on the comprehensive form of policy. The policy shall provide for bodily injury and property damage liability covering the operation of all automobiles used in connection with performing the contract. Policies covering automobiles operated in the United States shall provide coverage of at least $200,000 per person and $500,000 per occurrence for bodily injury and $20,000 per occurrence for property damage.

(d) Aircraft public and passenger liability. When aircraft are used in connection with performing the contract, the contractor shall have aircraft public and passenger liability insurance. Coverage shall be at least $200,000 per person and $500,000 per occurrence for bodily injury, other than passenger liability, and $200,000 per occurrence for property damage. Coverage for passenger liability bodily injury shall be at least $200,000 multiplied by the number of seats or passengers, whichever is greater.

(e) Vessel liability. When contract performance involves use of vessels, the Contractor shall provide, vessel collision liability and protection and indemnity liability insurance as determined by the Government.

(End of clause)

CAR 1352.237-75 Key personnel. (APR 2010)

(a) The contractor shall assign to this contract the following key personnel:

Facilities Manager: To be competed at time of award

Operations Manager: To be competed at time of award

Project Manager: To be competed at time of award

Safety Manager: To be competed at time of award

(b) The contractor shall obtain the consent of the Contracting Officer prior to making key personnel substitutions. Replacements for key personnel must possess qualifications equal to or exceeding the qualifications of the personnel being replaced, unless an exception is approved by the Contracting Officer.

(c) Requests for changes in key personnel shall be submitted to the Contracting Officer at least 15 working days prior to making any permanent substitutions. The request should contain a detailed explanation of the circumstances necessitating the proposed substitutions, complete resumes for the proposed substitutes, and any additional information requested by the Contracting Officer. The Contracting Officer will notify the contractor within 10 working days after receipt of all required information of the decision on substitutions. The contract will be modified to reflect any approved changes.

(End of clause)

NOAA Acquisition Manual 1330-52.203-71 NOTICE OF POST-GOVERNMENT EMPLOYMENT RESTRICTIONS (OCT 2015)

By submission of an offer in response to a NOAA solicitation or acceptance of a contract, the contractor acknowledges the restriction on current NOAA employees regarding contact with offerors regarding prospective employment and the corresponding obligations for contractors who engage them. The contractor further acknowledges that it has provided notice to former NOAA employees who will provide service to NOAA under the contract of post-Government employment restrictions that apply to them. Such restrictions include, but are not limited to, those set forth in:

(a) 41 U.S.C. § 2103 regarding contacts between a Federal employee working on a procurement and an offeror about prospective employment;

(b) 18 U.S.C. § 207 regarding the restrictions on former Federal employees having contact with a Federal agency on behalf of another person or entity concerning a specific party matter with which the former employee was involved as a Federal employee or for which the former Federal employee had official responsibility;

(c) 18 U.S.C. § 207 regarding the restrictions on former senior employees and senior political employees from having contact with his former Federal agency on behalf of another person or entity concerning any official matter; and

(d) 41 U.S.C. § 2104 regarding the restrictions on a former Federal employee involved in an acquisition over $10,000,000 from accepting compensation from a contractor.

(End of solicitation and contract language)

NOAA Acquisition Manual 1330-52.222-70 NOAA SEXUAL ASSAULT AND SEXUAL HARASSMENT PREVENTION AND RESPONSE POLICY (MAY 2018)

In accordance with NOAA Administrative Order (NAO) 202-1106, NOAA Sexual Assault and Sexual Harassment Prevention and Response Policy, it is the policy of NOAA to maintain a work environment free from sexual assault and sexual harassment. NOAA prohibits sexual assault and sexual harassment

by or of any employee, supervisor, manager, contractor, vendor, affiliate, or other individual with whom NOAA employees come into contact by the virtue of their work for NOAA.

(a) Definitions.

Contractor Employees - The term “contractor employees,” as used in this solicitation and contract language, refers to employees of the prime contractor or its subcontractors, affiliates, consultants, or team members.

Sexual Assault - The term sexual assault, as used in this solicitation and contract language, means any conduct proscribed by state or federal sexual abuse laws, including, but not limited to, those defined in chapter 109A of title 18 of the U.S. Code (sexual abuse), and assaults committed both by offenders who are strangers to the victim and by offenders who are known or related by blood or marriage to the victim.

Sexual Harassment - As defined by the Equal Employment Opportunity Commission, sexual harassment is a form of sex discrimination that violates Title VII of the Civil Rights Act of 1964. It includes unwelcome sexual advances, requests for sexual favors, and other verbal, non-verbal, or physical conduct of a sexual nature when any of the following are true:

● Submission to such conduct is made either explicitly or implicitly as a term or condition of an individual's employment;

● Submission to or rejection of such conduct by an individual is used as the basis for employment decisions affecting such individual;

● The conduct unreasonably interferes with an individual's work performance or creates an intimidating, hostile, or offensive working environment.

The main characteristics of sexual harassment are that the harasser's conduct is targeted against the recipient’s sex, gender identity, or sexual orientation, and is unwelcome to the recipient. It may include, but is not limited to: offensive jokes, slurs, epithets or name calling, undue attention, physical assaults or threats, unwelcome touching or contact, intimidation, ridicule or mockery, insults or put-downs, constant or unwelcome questions about an individual's identity, and offensive objects or pictures.

(b) Requirements.

1. It is the responsibility of the contractor to ensure that contractor employees maintain the highest degree of conduct and standards in performance of the contract. In support of this, NOAA urges its contractors to develop and enforce comprehensive company policy addressing sexual assault and sexual harassment.

2. The contractor shall include wording substantially the same as this solicitation and contract language in every subcontract so that it is binding upon each subcontractor.

3. If a contractor employee observes or is the object of sexual assault or sexual harassment, he or she is highly encouraged to report the matter, as soon as possible, to their immediate supervisor, the COR, subset of the COR (e.g. Task Manager or Assistant COR), or contracting officer (CO) if a COR is not assigned to the contract. The contract employee may also contact the NOAA Civil Rights Office to obtain

guidance on reporting instances of sexual assault or sexual harassment. If deemed necessary, the contractor employee may also report such instances to local law enforcement. In the case where the incident occurs while performing at a remote location, such as at sea or in the field (at a field camp or other isolated location) where the above referenced individuals are unavailable, the contractor employee should follow the reporting procedure set forth in NAO 202-1106, Section 6.07, Reporting from Remote Locations.

4. Swift reporting allows NOAA and the contractor to take the appropriate measures to ensure that offensive behavior stops and the complainants' needs are addressed.

5. The COR (if assigned), CO, and contractor, where applicable, will work together to ensure appropriate action is taken in accordance with applicable laws and regulations, contract terms and conditions, and the contractor's written policy (where applicable).

6. The contractor shall provide all contractor employees assigned to perform under this contract with mandatory sexual assault and sexual harassment prevention and response training in compliance with the requirements of NAO 202-1106, Section 5, Prevention Training and Awareness, as part of their initial in-processing and on an annual basis thereafter. The initial training shall be completed within 30 business days (30 unless a different number is inserted) of contract award or the date a contractor employee is assigned to perform under the contract, as applicable.

Evidence of initial training by name and date completed for each contractor employee, shall be submitted to the COR or contracting officer (if no COR assigned) within 10 business days of completion.

Evidence of annual training by name and date completed for each contractor employee shall be submitted to the COR or contracting officer (if no COR assigned) no later than March 1st of each calendar year of contract performance.

7. The mandatory sexual assault and sexual harassment training provided by the contractor shall include the required elements set forth by NOAA's Workplace Violence Program Manager. A link to the website including the required elements of the training is provided at https://www.noaa.gov/organization/acquisition-grants/noaa-workplace-harassment-training-for-contractors-and-financial. The website will also provide training materials and resources to assist the contractor in conducting the training. The contractor may provide training that solely addresses the NOAA required elements or may supplement existing company sexual assault and sexual harassment training in a manner that ensures all of the elements are adequately addressed.

8. The required elements of the training and resources available to the contractor for the training may be updated by NOAA periodically. The contractor is responsible for monitoring the website and incorporating any changes to the NOAA required elements into the contractor provided training.

9. NOAA's Workplace Violence Program Manager, COR, or CO may periodically review the contractor's training outline to ensure all required elements are included and, if necessary, any appropriate adjustments are made to the training by the contractor.

10. Contractor employees performing on assignments in a remote location, such as at a field camp or other isolated locations, are subject to receiving the same briefing on the parameters of the order provided to NOAA employees as set forth in Section 6 of NAO 202-1106.

11. The contractor shall provide a copy of this solicitation and contract language and NAO 202-1106 to contractor employees.

(c) Sexual Assault/Sexual Harassment (SASH) Helpline.

For NOAA employees, affiliates, and contractors who have experienced sexual assault or sexual harassment, NOAA has established the NOAA Sexual Assault/Sexual Harassment (SASH) helpline. This helpline is designed to provide crisis intervention, referrals, and emotional support to those who are victims and/or survivors of sexual harassment or sexual assault within the workplace. Contractor employees may use the helpline to receive live, confidential, one-on-one support in an occurrence of sexual harassment or assault by a Federal Government employee.

All services are anonymous, secure, and available worldwide, 24 hours a day, seven days a week. The NOAA SASH helpline is accessible through a variety of channels, including:

● Phone: 1-866-288-6558

● Website & Online Chat: https://www.noaasashhelpline.org/

● Mobile App: NOAA SASH Helpline (available via iOS and Android App Stores)

● Text: (202) 335-0265

(d) Confidentiality.

Any party receiving information from the filing of a complaint alleging sexual assault or sexual harassment, or while performing an investigation into such a complaint, shall keep the information confidential. “Confidentiality” means that the information shall only be shared with others who have a need to know the information to conduct their official duties.

(e) Remedies.

In addition to other remedies available to the Government, contractor employee violations of Federal requirements (e.g., law, statutes, executive orders, code, rules, regulations) applicable to sexual assault and sexual harassment and/or failure to complete the mandatory training set forth in this solicitation and contract language, may result in:

1. Requiring the contractor to remove a contractor employee or employees from the performance of the contract;

2. Requiring the contractor to terminate a subcontract;

3. Suspension of contract payments until the Contractor has taken appropriate remedial action;

4. Termination of the contract for default or cause, in accordance with the termination clause of this contract;

5. Suspension or debarment; or

6. Other appropriate action.

(End of solicitation and contract language)

NOAA Acquisition Manual 1330-52.237-70 CONTRACTOR COMMUNICATIONS

(a) A contractor employee shall be identified both by the individual's name and the contractor's name when:

● Included in NOAA's locator, and

● When submitting any type of electronic correspondence to any NOAA employee or stakeholder.

(b) Any written correspondence from a contractor or any contractor employee shall be printed on company/organization letterhead or otherwise clearly identify the sender as an employee of the company or organization and shall identify the contract number.

(c) Contractors and/or contractor employees shall clearly identify themselves as such in any verbal communications, whether in informal discussion or a formal meeting.

(End of solicitation and contract language)

NOAA Acquisition Manual 1330-52.237-71 NOAA GOVERNMENT-CONTRACTOR RELATIONS - NON-PERSONAL SERVICES CONTRACT (SEPT 2017)

(a) The Government and the contractor understand and agree that the services to be delivered under this contract by the contractor to the Government are non-personal services as defined in FAR Part 37, Service Contracting, and the parties recognize and agree that no employer-employee relationship exists or will exist under the contract between the Government and the contractor's personnel. It is, therefore, in the best interest of the Government to afford both parties an understanding of their respective obligations.

(b) Contractor personnel under this contract shall not:

1. Be placed in a position where they are under relatively continuous supervision and control of a Government employee.

2. Be placed in a position of command, supervision, administration, or control over Government personnel or over personnel of other contractors performing under other NOAA contracts.

(c) The services to be performed under this contract do not require the contractor or the contractor's personnel to exercise personal judgment and discretion on behalf of the Government. Rather, the contractor's personnel will act and exercise personal judgment and discretion on behalf of the contractor.

(d) Rules, regulations, directives, and requirements that are issued by the Department of Commerce and NOAA under its responsibility for good order, administration, and security are applicable to all personnel who enter the Government installation and facilities, who are provided access to Government systems, or who travel on Government transportation. This is not to be construed or interpreted to establish any degree of Government control that is inconsistent with a non-personal services contract.

(e) Both parties are responsible for monitoring contract activities for indications of improper employee-employer relationships during performance. In the event a situation or occurrence takes place inconsistent with this contract language, the following applies:

1. The contractor shall notify the contracting officer in writing within 5 business days from the date of any situation or occurrence where the contractor considers specific contract activity to be inconsistent with the intent of this contract language. The notice must include the date, nature and circumstance of the situation or occurrence, the name, function and activity of each Government employee or contractor employee involved or knowledgeable about the situation or occurrence, provide any documents or the substance of any oral communications related to the activity, and an estimated date by which the Government is recommended to respond to the notice in order to minimize cost, delay, or disruption of performance.

2. The contracting officer will review the information provided by the contractor, obtain additional information (if needed), and respond in writing as soon as practicable after receipt of the notification from the contractor. The contracting officer's response will provide a decision on whether the contracting officer determines the situation or occurrence to be inconsistent with the intent of this contract language and, if deemed necessary, will specify any corrective action(s) to be taken in order to resolve the issue.

(End of solicitation and contract language)

NOAA Acquisition Manual 1330-52.237-72 CONTRACTOR ACCESS TO NOAA FACILITIES (SEPT 2017)

(a)

1. The performance of this contract requires employees of the prime contractor or its subcontractors, affiliates, consultants, or team members ("contractor employees") to have access to and to the extent authorized, mobility within, a NOAA facility.

2. NOAA may close and or otherwise deny contractor employees access to a NOAA facility for a portion of a business day or longer for various reasons including, but not limited, to the following events:

i. Federal public holidays for Federal employees in accordance with 5 U.S.C. 6103;

ii. Fires, floods, earthquakes, and unusually severe weather, including but not limited to snow storms, tornadoes, and hurricanes;

iii. Occupational safety or health hazards;

iv. Lapse in Appropriations; or

v. Federal Statute, Executive Order, Presidential Proclamation, or any other unforeseen reason.

3. In such events, the contractor employees may be denied access to a NOAA facility that is ordinarily available for the contractor to perform work or make delivery, as required by the contract.

(b) In all instances where contractors are denied access or required to vacate a NOAA facility, in part or in whole, the contractor shall be responsible to ensure contractor personnel working under the contract

comply. If the circumstances permit, the contracting officer will provide direction to the contractor, either directly or through the COR, which could include continuing on-site performance during the NOAA facility closure period; however, if Government oversight is required and is not available, on-site performance shall not be allowed. In the absence of such direction, the contractor shall exercise sound judgment to minimize unnecessary contract costs and performance impacts, for example, performing required work off- site if possible or reassigning personnel to other activities if appropriate.

(c) The contractor shall be responsible for monitoring the Office of Personnel Management at opm.gov, the local radio, television stations, NOAA web sites, and other communication channels. Once the facility is accessible, the contractor shall resume contract performance as required by the contract.

(d) For the period that NOAA facilities were not accessible to contractors who required access in order to perform the services, the contracting officer may—

1. Adjust the contract performance or delivery schedule for a period equivalent to the period the NOAA facility was not accessible;

2. Forego the work; or

3. Reschedule the work by mutual agreement of the parties.

(e) Notification procedures of a NOAA facility closure, including contractor denial of access, are as follows:

1. The contractor shall be responsible for notification of its employees of the NOAA facility closure to include denial of access to the NOAA facility. The dismissal of NOAA employees in accordance with statute and regulations providing for such dismissals shall not, in itself, equate to a NOAA facility closure in which contractors are denied access. Moreover, the leave status of NOAA employees shall not be conveyed or imputed to contractor personnel. Accordingly, unless a NOAA facility is closed and the contractor is denied access to the facility, the contractor shall continue performance in accordance with the contract.

2. Access to Government facilities and resources, including equipment and systems, will be limited and personnel necessary to administer contract performance may not be available. Generally, supply and service contracts that are funded beyond the date of the lapse in appropriation and do not require access to Government facilities, active administration by Government personnel or the use of Government resources in a manner that would cause the Government to incur additional obligations during the lapse in appropriation may continue. If a delivery date for a contract falls during the period of a lapse in appropriations, Government personnel may not be available to receive delivery. Contractors are directed to consult with a contracting officer before attempting to make a delivery. Contracting officers will be available throughout the lapse in appropriation period to provide guidance.

Once OMB guidance is given, CORs, in consultation with the contracting officer, will notify those contractors that are deemed by the Program Office to be performing excepted work and identify the contractor personnel requiring access to NOAA facilities. CORs will also coordinate directly with facility management or physical security personnel at respective locations to ensure that the names of contractor personnel requiring access to Government facilities during the lapse in appropriations are provided to physical security personnel.

Contractors who are not designated as performing excepted work are not allowed access to Government facilities or to utilize Government resources in a manner that would incur any additional obligation of funding on behalf of the Government during the lapse in appropriation.

3. Unless otherwise specified within the contract award, contractors requiring access to NOAA facilities outside normal business hours or outside the normal workweek shall submit a written request in writing through the COR to the contracting officer. The written request shall provide justification supporting the required access and be submitted 72 hours/days (contracting officer insert number of days. If blank, 72 hours applies) before access to the NOAA facility is needed.

(End of solicitation and contract language)

Section I - Contract Clauses

Clauses Incorporated by Reference

Clause Number	Clause Title
52.203-6	Restrictions on Subcontractor Sales to the Government. (JUN 2020)
52.203-6	Restrictions on Subcontractor Sales to the Government. (JUN 2020) - Alternate I (NOV 2021)
52.203-13	Contractor Code of Business Ethics and Conduct. (NOV 2021)
52.203-17	Contractor Employee Whistleblower Rights. (NOV 2023)
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements. (JAN 2017)
52.204-9	Personal Identity Verification of Contractor Personnel. (JAN 2011)
52.204-13	System for Award Management-Maintenance. (OCT 2018) (Deviation JAN 2026)
52.209-6	Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (JAN 2025) (Deviation JAN 2026)
52.209-9	Updates of Publicly Available Information Regarding Responsibility Matters. (OCT 2018) (Deviation JAN 2026)
52.209-10	Prohibition on Contracting With Inverted Domestic Corporations. (NOV 2015) (Deviation JAN 2026)
52.212-4	Terms and Conditions-Commercial Products and Commercial Services. (NOV 2023) (Deviation JAN 2026)
52.219-4	Notice of Price Evaluation Preference for HUBZone Small Business Concerns. (OCT 2022) (Deviation JAN 2026)
52.219-6	Notice of Total Small Business Set-Aside. (NOV 2020) (Deviation JAN 2026)
52.219-8	Utilization of Small Business Concerns. (JAN 2025) (Deviation JAN 2026)
52.219-14	Limitations on Subcontracting. (OCT 2022) (Deviation JAN 2026)
52.222-3	Convict Labor. (JUN 2003)
52.222-19	Child Labor-Cooperation with Authorities and Remedies. (JAN 2025) (Deviation JAN 2026)
52.222-35	Equal Opportunity for Veterans. (JUN 2020) (Deviation JAN 2026)
52.222-36	Equal Opportunity for Workers with Disabilities. (JUN 2020) (Deviation JAN 2026)
52.222-37	Employment Reports on Veterans. (JUN 2020) (Deviation JAN 2026)
52.222-40	Notification of Employee Rights Under the National Labor Relations Act. (DEC 2010)
52.222-41	Service Contract Labor Standards. (AUG 2018)
52.222-43	Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (Multiple Year and Option Contracts). (AUG 2018)

Clause Number	Clause Title
52.222-44	Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment. (MAY 2014)
52.222-50	Combating Trafficking in Persons. (OCT 2025) (Deviation JAN 2026)
52.222-54	Employment Eligibility Verification. (JAN 2025) (Deviation JAN 2026)
52.222-62	Paid Sick Leave Under Executive Order 13706. (JAN 2022)
52.223-12	Maintenance, Service, Repair, or Disposal of Refrigeration Equipment and Air Conditioners. (MAY 2024) (Deviation JAN 2026)
52.223-23	Sustainable Products. (MAY 2024) ((DEVIATION Jan 2026))
52.224-3	Privacy Training. (JAN 2017)
52.225-1	Buy American-Supplies (OCT 2022) (Deviation JAN 2026)
52.226-8	Encouraging Contractor Policies To Ban Text Messaging While Driving. (MAY 2024)
52.232-33	Payment by Electronic Funds Transfer - System for Award Management. (OCT 2018)
52.232-40	Providing Accelerated Payments to Small Business Subcontractors. (MAR 2023)
52.232-90	Fast Payment Procedure. (Deviation JAN 2026)
52.233-3	Protest after Award. (AUG 1996) (Deviation JAN 2026)
52.233-4	Applicable Law for Breach of Contract Claim. (OCT 2004) (Deviation JAN 2026)
52.240-91	Security Prohibitions and Exclusions. (Deviation JAN 2026)
52.240-92	Security Requirements. (Deviation JAN 2026)
52.240-93	Basic Safeguarding of Covered Contractor Information Systems. (Deviation JAN 2026)
52.244-6	Subcontracts for Commercial Products and Commercial Services. (OCT 2025) (DEVIATION April 2026)
52.245-1	Government Property. (SEP 2021)
52.245-1	Government Property. (SEP 2021) - Alternate I (APR 2012)

Full Text Clauses

RFO 52.217-8 Option To Extend Services. (NOV 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within 10 days.

Inclusion of FAR clause 52.217-8, Option to Extend Services, in the solicitation and resultant contract is for use by the Government. The option will be exercised as needed at any time during the life of the

contract using the rates applicable at the time of exercise

If the Government fails to extend the term of the contract within the period identified, and the Government has provided a written notice to the Contractor that the action is undergoing review in accordance with Department of Commerce procedures for implementing Executive Order 14222, the Contractor shall stop all work and incur no costs to be charged to the Government. Once the Department of Commerce's review process has occurred, or no later than 30 days from the initial review notification, the Government will notify the Contractor if the option may be exercised and, if so, adjust start and end dates of the period of performance accordingly. The Government will then extend the term of the contract with a bilateral modification.

(End of clause)

RFO 52.217-9 Option To Extend the Term of the Contract. (MAR 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within 10 days; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least 30 days before the contract expires. The preliminary notice does not commit the Government to an extension. If the Government fails to extend the term of the contract within the period identified, and the Government has provided a written notice to the Contractor that the action is undergoing review in accordance with Department of Commerce procedures for implementing Executive Order 14222, the Contractor shall stop all work and incur no costs to be charged to the Government. Once the Department of Commerce's review process has occurred, or no later than 30 days from the initial review notification, the Government will notify the Contractor if the option may be exercised and, if so, adjust start and end dates of the period of performance accordingly. The Government will then extend the term of the contract with a bilateral modification.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed 60 months.

(End of clause)

RFO 52.222-42 Statement of Equivalent Rates for Federal Hires. (MAY 2014)

In compliance with the Service Contract Labor Standards statute and the regulations of the Secretary of Labor (29 CFR part 4), this clause identifies the classes of service employees expected to be employed under the contract and states the wages and fringe benefits payable to each if they were employed by the contracting agency subject to the provisions of 5 U.S.C. 5341 or 5332.

This Statement is for Information Only: It Is Not A Wage Determination

Employee class Monetary wage - Fringe benefits

Actual Federal Equivalent Position & Grade	Federal Total Wage + Fringe

GS-0318 Secretary (GS-07, Step 1)	$37.24
GS-0085 Security Guard (GS-04, Step 1)	$26.87
GS-0085 Security Guard (GS-05, Step 1)	$30.07
GS-2005 Supply Technician (GS-07, Step 1)	$37.24
GS-2210 Information Technology Specialist (GS-11, Step 1)	$55.13
WG-2604 Electronics Mechanic (WG-11, Step 2)	$55.18
WG-2604 Electronics Mechanic (WG-11, Step 2)	$55.18
WG-2604 Electronics Mechanic Leader (WG-12, Step 2)	$58.59
WG-3502 Laborer (WG-03, Step 2)	$32.43
WG-4749 Maintenance Mechanic (WG-09, Step 2)	$49.05
WG-5415 Air Conditioning Equipment Mechanic (WG-10, Step 2)	$51.78
WG-2805 Electrician (WG-10, Step 2)	$51.78
WG-4206 Plumber (WG-10, Step 2)	$51.78

(End of clause)

RFO 52.222-90 Addressing DEI Discrimination by Federal Contractors ((DEVIATION April 2026))

(a) *Definitions*. As used in this clause-

Program participation means membership or participation in, or access or admission to: training, mentoring, or leadership development programs; educational opportunities; clubs; associations; or similar opportunities that are sponsored or established by the contractor or subcontractor.

Racially discriminatory diversity, equity, and inclusion (DEI) activities means disparate treatment based on race or ethnicity in the recruitment, employment (e.g., hiring, promotions), contracting (*e.g*., vendor agreements), program participation, or allocation or deployment of an entity's resources.

(b) In connection with the performance of work under this contract, the Contractor agrees as follows:

(1) The Contractor will not engage in any racially discriminatory DEI activities;

(2) The Contractor will furnish all information and reports, including providing access to books, records, and accounts, as required by the Contracting Officer, for purposes of ascertaining compliance with this clause;

(3) In the event of the Contractor's or a subcontractor's noncompliance with this clause, this contract may be canceled, terminated, or suspended in whole or in part, and the Contractor or subcontractor may be declared ineligible for further Government contracts;

(4) The Contractor will report any subcontractor's known or reasonably knowable conduct that may violate this clause to the Contracting Officer and take any appropriate remedial actions directed by the Contracting Officer; and

(5) The Contractor will inform the Contracting Officer if a subcontractor sues the Contractor and the suit puts at issue, in any way, the validity of this clause.

(6) The Contractor recognizes that compliance with the requirements of this clause are material to the Government's payment decisions for purposes of 31 U.S.C. 3729(b)(4).

(c) The Contractor must include the substance of this clause, including this paragraph (c), in subcontracts at any tier, including those for commercial products and commercial services, except those where the place of delivery or performance is outside the United States.

(End of clause)

RFO 52.252-2 Clauses Incorporated by Reference. (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):
https://www.acquisition.gov/far-overhaul

(End of clause)

RFO 52.252-6 Authorized Deviations in Clauses. (NOV 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of (DEVIATION) after the date of the clause.

(b) The use in this solicitation or contract of any Commerce Acquisition Regulation (CAR) (48 CFR Chapter 13) clause with an authorized deviation is indicated by the addition of (DEVIATION) after the name of the regulation.

(End of clause)

Section J - List of Documents, Exhibits and Other Attachments

Attachment Number	Title
Attachment J-1	PWS - FCDAS OM_FINAL
Attachment J-2	Price Proposal_FCDAS OM
Attachment J-3	Overtime Labor Hours Breakout Worksheet_FCDAS OM
Attachment J-4	Contract Security Classification Specification, DD Form 254 (DRAFT)
Attachment J-5	Fairbanks Joint Craft Council (FJCC) Collective Bargaining Agreement (CBA) effective June 1, 2026
Attachment J-6	General Teamsters Local 959 CBA effective June 1, 2026
Attachment J-7	Service Contract Wage Determination 2015-5683 Rev. 28
Attachment J-8	SCA WD for Unions 2017-0746 Rev. 16
Attachment J-9	Managed Personal Property and Capital Equipment List
Attachment J-10	Past Performance Questionnaire
Attachment J-11	Past Performance Relevancy Surveys
Attachment J-12	Question and Comment Template

Section K - Representations, Certifications, and Other Statements of Bidders

RFO 52.203-11 Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions. (SEP 2024)

RFO 52.203-18 Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation. (JAN 2017)

RFO 52.209-12 Certification Regarding Tax Matters. (OCT 2025)

RFO 52.223-4 Recovered Material Certification. (MAY 2008)

RFO 52.225-2 Buy American Certificate. (OCT 2022)

RFO 52.240-90 Security Prohibitions and Exclusions Representations and Certifications. (Deviation JAN 2026)

Section L - Instructions, Conditions, and Notices to Bidders

RFO 52.204-7 System for Award Management-Registration. (NOV 2024) (Deviation JAN 2026)

RFO 52.212-1 Instructions to Offerors-Commercial Products and Commercial Services. (SEP 2023) (Deviation JAN 2026)

RFO 52.216-31 Time-and-Materials/Labor-Hour Proposal Requirements-Commercial Acquisition. (NOV 2021)

RFO 52.233-2 Service of Protest. (SEP 2006) (Deviation JAN 2026)

CAR 1352.233-71 GAO and Court of Federal Claims protests. (APR 2010)

CAR 1352.239-71 Electronic and information technology. (APR 2010)

(a) To be considered eligible for award, offerors must propose electronic and information technology (EIT) that meet the applicable Access Board accessibility standards at 36 CFR 1194 designated below:

[X] 1194.21 Software applications and operating systems

[X] 1194.22 Web-based intranet and internet information and applications

[X] 1194.23 Telecommunications products

[X] 1194.24 Video and multimedia products

[X] 1194.25 Self-contained, closed products

[X] 1194.26 Desktop and portable computers

[X] 1194.31 Functional performance criteria

[X] 1194.41 Information, documentation and support

(b) The standards do not require the installation of specific accessibility-related software or the attachment of an assistive technology device, but merely require that the EIT be compatible with such software and devices so that it can be made accessible if so required by the agency in the future.

(c) Alternatively, offerors may propose products and services that provide equivalent facilitation. Such offers will be considered to have met the provisions of the Access Board standards for the feature or components providing equivalent facilitation. If none of the offers that meet all applicable provisions of the standards could be accepted without imposing an undue burden on the agency or component, or if none of the offerors propose products or services that fully meet all of the applicable Access Board's provisions, those offerors whose products or services meet some of the applicable provisions will be considered eligible for award. Awards will not be made to an offeror meeting all or some of the applicable Access Board provisions if award would impose an undue burden upon the agency.

(d) Offerors must submit representation information concerning their products by completing the VPAT template at *http://www.Section508.gov*.

(End of clause)

L.1 General Instructions

Offerors shall examine and follow all instructions. Offerors whose proposals do not follow all instructions may be deemed “non-responsive” and disqualified from further evaluation. Proposals shall conform to solicitation provisions and be prepared in accordance with Section L, Instructions, Conditions and Notices to Offerors. To aid in the evaluations, proposals shall be neatly prepared, clearly and concisely written, properly indexed, and logically assembled.

Offerors are asked to bear in mind that all material submitted should be directly pertinent to the solicitation requirements. Extraneous narratives, elaborate brochures, uninformative "PR" material and so forth, shall not be submitted.

The Government considers statements that the prospective offerors understand, can, or will comply with the specifications, or statements paraphrasing the requirements or parts thereof, to be inadequate and unsatisfactory. The Government further considers mere reiteration of the requirement or standard reference material to also be inadequate and unsatisfactory. Such responses may result in a proposal being deemed unacceptable and ineligible for award.

This solicitation does not commit the Government to pay any cost for the preparation and submission of a proposal in response to this RFP.

L.2 PROPOSAL PREPARATION

A fully responsive proposal shall include all of the following submissions and actions. Failure to submit any of the required documents may remove an Offeror from further consideration.

Table L.1

Volume	Factor	Items
I	Business Proposal	Shall be responsive to RFP Section L.6 • Coversheet • Compliance Statement • Representations and Certifications • Exceptions, Deviations, Assumptions No page limitation.

II	Factor 1: Technical Approach (Written)	Shall be responsive to RFP Section L.6 Written Page limit – 20 pages
III	Factor 2: Management Approach (Combination Oral Presentation and Written)	Shall be responsive to RFP Section L.6 Oral Presentation Slide Deck (MS PowerPoint). Page Limit - 10 Slides Key Personnel Resumes (Written) Page Limit – 2 Pages Per resume Phase-In Plan (Written) Page limit 5 pages
		Oral Presentation 60 minutes Oral Briefing (plus 50 minutes for break and questions). Maximum of 5 participants
IV	Past Performance	Shall be responsive to RFP Section L.6 Past Performance Past Performance Relevancy Survey (Attachment J-11) Page Limit – 2 Pages Per Survey *Attachment J-11 Shall not exceed the provided 2 page form provided.
V	Factor 4: Price	Shall be responsive to RFP Section L.6 Price Proposal Narrative Price Proposal Spreadsheet (Attachment J-2) Overtime Labor Hours Breakout Worksheet (Attachment J-3) No page limitation.
VI	Organizational Conflict of Interest (OCI) Mitigation Plan	Shall be responsive to RFP Section L.9 No page limitation.

NOTE: Any pages in excess of the stated page limit for the non-price volumes will be disregarded, and will not be included in the proposal evaluation. Failure of the offeror to comply with the page limitations, resulting in the excess pages not being evaluated, shall not constitute grounds for a protest.

L.3 ORAL PRESENTATIONS GENERAL INSTRUCTIONS

Oral presentations are required. Offerors shall submit their request for their Oral Presentation time slot

by the due date and time specified in Section L.6.3; and submit their oral presentation slide deck by the due date and times specified in Section L.6.2. Refer to Table L.1 for page limits. The Offerors are reminded to consider that the oral briefings are time-limited.

The purpose of the session is for the Offeror to verbally present their proposal and to interact with the Government personnel. **Slides WILL BE EVALUATED.** Slides are limited to a minimum font size of 22, Times New Roman. If there are graphics or tables included, then a font size no smaller than 18 is permitted. The slide size must be in Standard (4:3) format.

The Oral Presentation shall be conducted in such a manner as to enable the Government Evaluators to make a thorough evaluation and arrive at a sound determination regarding the feasibility and effectiveness of the Offeror's Management Approach. Presentations which merely affirm the offeror's experience and expertise by using phrases such as "have previous experience" or "have performed this before" may not provide confidence to the Government evaluators. The Offeror must sufficiently describe their experience and expertise for this factor.

Oral presentations must begin within 15 minutes of the scheduled start time. Offerors who are more than 15 minutes late to their scheduled oral briefing time slots are considered late and may not receive any further consideration. However, the Government may, at its discretion, reschedule Oral Presentations that were delayed due to issues outside of Offerors control. Offerors are also advised that the Government intends to abide by the stated time limits; therefore, no additional time shall be given to Offerors if they are late for their scheduled Oral Presentation time slots. No Oral Presentation will be electronically recorded by the Government nor the Offeror.

The participation of an individual at more than one oral presentation may be grounds for dismissal and immediate rejection of the proposal. This includes the recurrence of the same non-prime Offerors; even if there were different individuals participating across multiple oral presentations. Offerors shall be mindful of its proposed subcontractors, and oral presentation participants.

Offerors shall perform oral presentations as indicated in Table L.6.7.

L.4 RULES OF ENGAGEMENT FOR ORAL PRESENTATIONS

- Oral presentations **do not** constitute negotiations. The Government will not ask questions that will invite or allow the Offeror to change its offer; however, the Government may ask clarification questions during the presentation. The Offeror shall not volunteer any information that might be construed as changing its offer. Oral presentations are distinct from the Government's reserved right to conduct exchanges.
- The Offeror may not generally ask questions during the oral presentation. Any questions asked must be directed to the Contracting Officer, and should only deal with logistics and conduct of the oral briefing.
- The Offeror participants shall not reach back, by telephone, e-mail or any other means, to any other personnel or persons for assistance during the oral briefing, this includes the 20-minute government caucus and the 30-minute interactive dialouge.

- The Offeror shall not make any reference to cost or price; however, resource information (such as data concerning labor hours and categories, materials or supplies required for performance, subcontracts, etc.) may be discussed so that the Offeror's understanding of the requirements may be evaluated.

L.5 FORMAT INSTRUCTIONS

The electronic submission for each volume shall be submitted in Microsoft (MS) Office 2019 Suite or prior versions format (MS Word, MS Excel, or MS PowerPoint where applicable) with Optical Character Recognition (OCR) and spreadsheet files shall include all formulas, functions, computations, and equations used to compute proposed amounts, and shall be print-ready. Security permissions on the files shall be set to allow the Government to select, cut, paste, review, and print text and graphics without the need for a password. Each email shall be limited in size to 22MB or less. If multiple emails are required, the subject of the email shall specify the number and total of email submissions (e.g. 1 of 2, 2 of 2, etc.). Hard copy proposals will not be accepted.

Each volume shall be submitted as a separate electronic file and shall be clearly identified on a cover page. All pages of each volume shall be appropriately numbered and identified by the complete company name, date, and solicitation number in either the header or footer. Each volume shall contain a Table of Contents referencing various pages and sections, a List of Tables and Figures, a List of Attachments (if applicable), and a List of Acronyms and Terms. In addition, Volume III shall contain a list of no more than five (5) Oral Presentation participants, who must be identified by their full names, email addresses, employer(s), relationship(s) to the Offeror, job title(s), proposed role(s) in performance (if any) and citizenship status.

A Table of Contents shall have working links to the various pages and sections. Proprietary information shall be clearly marked.

The following is not included against the page count for each factor.

- Table of Contents
- List of Acronyms

For written submissions other than MS PowerPoint slides for the oral presentation factor submission, all narrative text contained in the proposal response must be formatted to 8 ½ x 11 paper with margins of 1" at the top, bottom, and both sides using single spaced, Times New Roman 12-point font.

Offerors shall complete the Volume V Pricing template in accordance with the format as provided, without changes to font type and sizes as have already been pre-selected within the document.

Information shall be confined to the appropriate volume to facilitate independent evaluation. Each volume must be presented on a stand-alone basis so that the Government can evaluate its contents without cross-referencing to other volumes of the proposal. The Government may consider information it requires for proposal evaluation not found in its designated volume as having been omitted from the Offeror's proposal.

In order for the non-price volumes to be evaluated strictly on the merit of the material submitted, no proposed price information shall be included. However, the type and quantity of labor and materials (e.g. labor mix, labor hours, work breakdown structure, etc.) may be included, without any associated price information. Inclusion of proposed price information in Volumes II, III and IV may result in the Government finding the volumes to be non-compliant to the solicitation.

L.6 PROPOSAL INSTRUCTIONS

L.6.1 Proposal Content

The Offeror's Proposal shall consist of the following:

- Volume I - Business Proposal
- Volume II - Factor 1, Technical Approach (Written)
- Volume III - Factor 2, Management Approach (Oral Presentation)
- Volume IV - Factor 3, Past Performance
- Volume V - Factor 4, Price
- Volume VI - Organizational Conflict of Interest (OCI) Mitigation Plan

L.6.2 Submission of Proposals

Proposals are due via e-mail by no later than 2:00PM ET, On November 9, 2026 andrea.Chiodi@noaa.gov and jame.chang@noa.gov. Proposals received after the specified due date and time will be considered late and not receive any further consideration. The timestamp when the emailed proposal is received by the CO/CS will be considered when determining if a proposal is late. Requests for time slots or document submissions received past the required date and time specified in Table L.1 may be considered late and thus not considered for further evaluation or award.

Offerors are encouraged to request confirmation of receipt to ensure all submitted attachments were successfully received. The proposal submission shall include the solicitation number in the email subject line. The email shall include the name of the organization, along with the name and phone number of the individual submitting the proposal.

L.6.3. Oral Presentation Scheduling

Offerors shall submit a request for their Oral Presentation time slot no later than 3:00PM ET, on October 21, 2026. Offerors shall submit three (3) time slots, in order of preference and list at least one (1) Scheduling Point of Contact (name, phone number, and email address). Oral Presentation time slots will be assigned in the order that they were received. If none of the three (3) requested time slots are available, the Government will assign the next available time slot. The Government will confirm the assigned time slot and will include instructions for testing accessibility to Google Meet and Google Meet access information for the Oral Presentation.

Oral Presentation – time slots (all times are in Eastern Times) are:

11/12/2026: 11:00 AM to 1:00 PM
11/16/2026: 11:00 AM to 1:00 PM
11/17/2026: 11:00 AM to 1:00 PM
11/18/2026: 11:00 AM to 1:00 PM
11/19/2026: 11:00 AM to 1:00 PM

[Additional times lots may be made available at the Government's discretion]

L.6.4 Oral Presentation Time Limits

The Oral Presentation shall be responsive to RFP Section L.6.7 and last up to 60 minutes in length. Each Offeror's participation in the Oral Presentation is limited to no more than five (5) participants.

Immediately after the Oral Presentation, the Evaluation Panel may take a 20 minute break and then conduct up to 30 minutes of interactive dialogue based on the presentation. Please note, oral presentations **DO NOT** constitute negotiations. The Government will not ask questions that will invite or allow the Offeror to change its offer.

Topic	Approximate Time
Greetings & Briefing Guidelines	5 Minutes
Factor 2(Management Approach)	60 Minutes
Break for Government Caucus	20 Minutes
Follow-Up Interactive Dialogue	30 Minutes

L.6.5 Volume I: Business Proposal

The Offeror shall submit a business volume including the information identified below. For Joint Ventures (JV), include all information of the JV and each member. For Prime/Subcontractor Arrangements, include all information for the Prime and each first-tier subcontractor.

- Offeror's company name, address, CAGE code, UEI number,
- Name(s), title(s), and email address(es) for the point(s) of contact able to answer questions on the Offeror's proposal and to legally/contractually obligate the Offeror;
- Confirmation of acceptance of all RFP terms and conditions, conformed through the latest amendment (if any);
- Completed copy of the representations and certifications.
- Any Exceptions, Deviations, or Assumptions used in the proposal.
- For Prime/Subcontractor Arrangements provide the company name, address, CAGE code, UEI number, and Small business size status for each first-tier subcontractor.
- The acceptance period entered on the Proposal Form by the offeror shall not be less than 180 calendar days from the solicitation closing date

- The person signing the Proposal Form must have the authority to commit the offeror to all of the provisions of the proposal, fully recognizing that the Government has the right, by terms of the Solicitation, to make an award without negotiation if it so elects.

L.6.6 Volume II - Factor 1, Technical Approach (Written)

The Offeror's Technical Approach shall provide a narrative and supporting documentation that demonstrates the following:

(A) A thorough understanding of and approach for performing the PWS requirements, including operational support and compliance with technical requirements. This includes the proposed methodology designed to meet these requirements, including any special considerations for an Arctic environment.

(B) A thorough understanding of and approach for performing the station's onsite management and staffing requirements, including a description of the flexibility of station personnel work assignments and task cross training.

(C) An approach for providing analysis, troubleshooting, and testing of satellite ground systems, including the offeror's plan for obtaining and allocating sufficient resources.

(D) A thorough understanding of and approach for performing the station's Information Technology (IT) requirements in accordance with the PWS.

L.6.7 Volume III - Factor 2, Management Approach

The Offeror's Factor 2 Oral Presentation shall describe their ability demonstrate the following :

ORAL PRESENTATION

(A) Documentation demonstrating that the offeror holds an active Facility Clearance (FCL) at the Secret or higher level. Offerors are required to hold this active FCL at the Secret level by the closing date of this solicitation. If a subcontractor will be performing any of the tasks which require a security clearance in accordance with the PWS, the subcontractor will also be required to provide proof of an active Facility Clearance at the Secret or higher level.

(B) Ability to effectively recruit and retain qualified staff. This includes the offeror's plan for recruiting locally or from the rest of the United States if necessary to hire the best possible personnel and to minimize any staff turnover. The offeror's management approach may also include a proposed plan to incentivize contractor staff for above and beyond performance, and for keeping abreast of any future technological advancements that can be implemented by the Station Manager.

(C) Includes a staffing plan and labor mix that demonstrates the necessary skills and training of proposed staff to successfully synchronize and manage the required services.

(D) A labor utilization analysis which demonstrates staffing satellite operations at the required minimum staffing levels specified in the PWS on a 24x7x365 basis. The analysis must consider scheduled or unscheduled non-productive hours as a result of personnel leave, weekends, and observed holidays.

(E) Ability to successfully manage in an environment requiring subcontracted labor subject to collective bargaining and labor union involvement. This includes the offeror's plan for ensuring the COR and the Station Manager are kept up to date on the status of negotiations of the collective bargaining agreements (CBAs), and of any potential changes to the CBAs which may have direct effect in the efficient operations of the Station. This also includes the offeror's plan for communicating with the Contracting Officer and Contract Specialist before and while negotiating the CBAs to facilitate any contract modifications to incorporate new CBAs into the contract.

(F) A demonstrated ability to address plans for any pandemics or natural disasters that are consistent with all Station, NESDIS, NOAA, DOC, state and federal regulations and ensures the continued efficient operations of the Station. Plans should include how to address different phases of response to include triage, assessment, and recovery.

WRITTEN:

(G) Key Personnel Resumes:

The Offeror shall include resumes (and if not a current employee, commitment letter) of proposed key personnel and their defined functional roles and responsibilities as needed for this requirement, as Volume III attachments:

1. At a minimum, provide key personnel name, Labor Category, current employer, and proposed role.
2. In addition, the Offeror should propose additional key personnel for significant programmatic or technical roles and rationale (without any associated price information) supporting the proposed strategy.

(H) Phase-In Plan and Workforce Acquisition Plan:

- The Offeror shall provide a narrative describing its approach to ensuring a fully qualified workforce is in place by Day 1 of the Base Period, and how that workforce will be maintained. The narrative must address the following:
    - Talent Acquisition & Institutional Knowledge: The Offeror shall identify the highly specialized labor categories and technical skillsets it considers most critical to the FCDAS mission. The Offeror must detail its strategy for sourcing these roles. This strategy must address how the Offeror will effectively recruit locally or from the rest of the United States to hire the best possible personnel. Offerors may also describe strategies for retaining institutional knowledge and minimizing turnover of the existing facility workforce.

- Phase-In Execution & Day-1 Readiness: The Offeror shall detail its timeline and milestones for achieving full operational control by June 1, 2027. If the Offeror's approach requires the 30-day Phase-In period (May 1, 2027 – May 31, 2027), the Offeror shall describe its specific activities for onboarding staff, executing knowledge transfer, processing security clearances, and shadowing current operations. If the Offeror is currently performing these services and does not require the 30-day Phase-In period, the Offeror shall describe its approach to seamlessly cutting over administrative and management structures to the new contract requirements.

- Compensation and Labor Relations: The Offeror shall describe how its compensation philosophy, fringe benefits, and approach to managing personnel subject to Collective Bargaining Agreements (CBAs) will ensure long-term workforce stability in a remote environment.

L.6.8 Volume IV Factor 3, Past Performance

PAST PERFORMANCE REFERENCES: Offerors are required to submit past performance references for no more than three (3) recent and relevant contracts (to include both the Prime and any Subcontractor proposed to expend at least 25 percent of the cost of contract performance). The Government defines "relevant" as work efforts that are similar in nature, size (i.e., relative extent and/or magnitude), and complexity (i.e., degree to which something possesses many different and interconnected parts/processes/systems) to the supplies/services being procured under this solicitation; and defines "recent" as work in process or that was completed within 5 years of the date of issuance of this solicitation, and for either case has at least six (6) months of performance. NOAA reserves the right to contact the references cited for past performance information.

PAST PERFORMANCE QUESTIONNAIRES: The offeror shall furnish a Past Performance Questionnaire (PPQ) (Section J, Attachment J-10) to up to the same three (3) references. In turn, the evaluating firm or agency shall submit the completed questionnaires directly via email to the Contract Specialist, Andrea Chiodi (andrea.chiodi@noaa.gov) with a copy to the Contracting Officer, Jame Chang (jame.chang@noaa.gov). Offerors shall make every reasonable effort to ensure that evaluators send the completed questionnaire directly to the Government so that it is received no later than the closing date and time of this solicitation. Completed questionnaires submitted directly from the offeror WILL NOT be considered for evaluation purposes. It is the Offeror's responsibility to ensure that completed questionnaires are in the Contracting Officer's possession ON OR BEFORE THE REQUIRED PROPOSAL DUE DATE AND TIME. Any questionnaire received after the proposal due date/time may not be considered in the Offeror's past performance evaluation.

PAST PERFORMANCE QUESTIONNAIRE INSTRUCTIONS: Part 1 shall be completed by the offeror/Major Subcontractor and provided to the Referenced Assessor/Evaluator (Clients that had experience with the offeror/Major Subcontractor on a previous relevant contract). Major Subcontractor means any Subcontractor performing at least 25% of the proposed cost. The Referenced Assessor/Evaluator, in turn, shall verify Part 1, complete Part 2 of the questionnaire, and submit to the Contracting Office. The Referenced Assessor/Evaluator may annotate and provide the correct information accordingly in Part 1

if any information is incorrect.

PAST PERFORMANCE RELEVANCY SURVEY: The Offeror shall provide a Past Performance Relevancy Survey, Attachment J-11, in Volume IV for each Past Performance project being submitted. The Past Performance Relevancy Survey shall include a description of each project including, the size, scope, cost, and complexity associated with the entities furnishing responses to the Past Performance Questionnaire. This description shall include the name, company, address, and phone number of the individual reference the Offeror has sent the Past Performance Questionnaire to. The Offeror may also provide the overall outcome of the contract and any issues and how they were resolved. This Volume limited to the 2 page form per project referenced for past performance. Any information exceeding page 2 on the form will not be evaluated.

L.6.9 Volume V – Factor 4, Price

(i) The Offeror shall submit a completed Section B, Supplies or Services/Prices, as part of its Volume V Price proposal.

(ii) The offeror shall complete and include the following with their price proposal:

(A) Attachment J-2, Price Proposal Spreadsheet; and

(B) Attachment J-3, Overtime Labor Hour Breakout Worksheet.

(C) A comprehensive price narrative detailing the Offeror's basis of estimates and explicitly acknowledging the Government's assumption of cost risk for non-productive hours. To support the pricing template, the narrative must specifically address the following:

- **Indirect Rates and Profit:** Detail the full burden buildup by explaining proposed fringe, overhead, General and Administrative (G&A) expenses, and profit (fee).
- **Rate Justification:** Support the basis of estimate with any existing negotiated indirect rate agreements or approved forward pricing rate agreements (FPRAs). Offerors without rates negotiated by a cognizant auditor must explain their indirect buildup and provide supporting financial statements.
- **Fringe Breakout and Reconciliation:** Provide a detailed breakout isolating (1) voluntary fringe, (2) mandatory fringe, (3) company-specific fringe, and (4) fringe required by FAR 52.222-43 and the applicable CBA. The narrative must explicitly demonstrate how these components reconcile and tie back to the company's negotiated corporate fringe rate.
- **CBA Premiums:** Explain the rationale for any premiums proposed above the mandated Collective Bargaining Agreement (CBA) minimum rates.

(iii) Instructions for completing Attachment J-2:

The Government is providing the labor categories, CBA-stipulated minimum direct labor rates, labor hours, and shift types in the appropriate columns for the Base through Option Year 4 in the "Base & Option" and "Risk Mitigation Options" tabs in the attached pricing template. **Offerors shall NOT input or alter the labor hours, labor categories, or staffing mix**. Offerors are required to update the template to show their full burden by inputting any wage rates higher than the CBA-stipulated minimums (see "Fixed staffing profile and labor mix" below), proposed fringe, overhead, General and Administrative (G&A) expenses, and profit. The Offeror must provide a detailed breakout of their fringe rate, specifically

isolating: (1) voluntary fringe, (2) mandatory fringe, (3) company-specific fringe, and (4) fringe required by RFO 52.222-43 and the applicable CBAs. For all non-FFP items, Offerors must assume and use the exact plug-in numbers provided by the Government in the pricing template.

(iv) Instructions for completing Attachment J-3. The offeror shall input their proposed fully burdened overtime rate in Column C based on the overtime rates for the crosswalked individuals listed in Attachment J-2. This overtime rate would be the prevailing rate regardless of who performs the work attributed to this rate..

(v) Fixed Staffing Profile and Labor Mix: Several labor categories are subject to existing CBAs. The Government has pre-populated the Attachment J-2 Price Proposal Spreadsheet with the mandated direct labor rates based on the executed CBA agreements. All compensable hours are included in the Government's calculation. **Note:** If an Offeror identifies an error in the Government's interpretation of the CBA within the pricing template, the Offeror shall submit a question during the Q&A period. If a revision is necessary, the Government will amend the template to ensure equity among all Offerors.

Offerors must assume the Government-provided fixed staffing and labor mix for the 12-month base period, the four option periods, and the options increased labor and any extensions (e.g., FAR 52.217-8). The provided hours include both productive and non-productive time (total compensable hours) and align with the shifts specified in the PWS and applicable CBAs. Offerors shall not alter the number of FTEs or hours. Offerors may propose direct labor rates that are higher than the CBA-stipulated minimum rates; however, if doing so, the Offeror must add a specific column to the pricing template to explicitly show the premium applied above the CBA rate. All pricing must be completely formula-based within the provided spreadsheet, without pulling data or linking from outside sheets. The spreadsheet must clearly show the full burdening buildup, particularly for the fringe rate. The Offeror must clearly demonstrate the methodology and formulas for how the fringe adjustment will be calculated if CBAs are negotiated and revised in accordance with FAR 52.222-43. Additionally, the Offeror must show the relationship to the company's negotiated corporate fringe rate, providing a clear breakout of these components within the sheet and how this results in the total price to the Government. (vi) Subcontractors are authorized to submit any proprietary information directly to the Contract Specialist, Andrea Chiodi with a copy to the Contracting Officer, Jame Chang, in accordance with the same submittal instructions provided herein.

Offerors shall submit a price proposal to include a narrative response that provides the basis of estimate to support the fringe, overhead, General and Administrative (G&A) expenses, and profit made in developing the price proposal along with any forward pricing rate agreements or indirect rate agreements negotiated with the cognizant auditor IAW FAR 42.1301.

Transition Phase Pricing: Only non-incumbent Offerors are required to propose pricing for the 1-month Transition Phase. Incumbent Offerors shall leave the Transition Phase portion of the pricing template blank.

CBA Errors/Interpretations: If an Offeror identifies an error in the Government's interpretation of the CBA within the pricing template, the Offeror shall submit a question for consideration during the Q&A period. If a revision is necessary to ensure equity, the Government will amend the template.

Profit Risk Considerations: When proposing Profit, Offerors shall bear in mind that the majority of this

contract's labor is subject to RFO 52.222-43 and the Government assumes the cost risk for all non-productive hours. Consequently, there is minimal cost risk to the Contractor for the majority of this contract. The Price Narrative should reflect the Offeror's understanding of this low-risk posture.

L. 10 Volume VI: Organizational Conflict of Interest

Offeror shall include an OCI Mitigation Plan as a Volume VII attachment in accordance with the clauses and provisions listed in the subject solicitation. If an Offeror, or any of its subcontractors, are not aware of any facts which would create any actual or potential OCI relating to the award of this order, it may provide a brief and succinct statement that it has no apparent or potential OCIs. The Government's request for correction or revision of an OCI Mitigation Plan does not constitute exchanges at any time prior to award. Failure to submit an acceptable OCI Mitigation Plan may result in the Government considering the quotation to be non-compliant to the solicitation and may remove an Offeror from further consideration.

L.11 Technical Library Access Instructions

To assist Offerors in developing their proposals, the Government has compiled a set of technical documents, with access controlled through Google Drive (i.e., "Technical Library"). The Government will only provide access to a single email address per Prime Offeror/CTA.

Offerors shall submit their request for access to the Technical Library to the Contracting Officer and Contract Specialist no later than 3:00PM ET, on October 21, 2026.

L.12 System for Award Management (SAM)

System updates may lag policy updates. The System for Award Management (SAM) may continue to require entities to complete representations based on provisions that are not included in agency solicitations. Examples include 52.222-25, Affirmative Action Compliance, and paragraph (d) of 52.212-3, Offeror Representations and Certifications—Commercial Products and Commercial Services. Contracting officers will not consider these representations when making award decisions or enforce requirements. Entities are not required to, nor are they able to, update their entity registration to remove these representations in SAM.

END OF INSTRUCTIONS

RFO 52.216-1 Type of Contract. (APR 1984) (Deviation JUL 2026)

The Government contemplates award of a Firm-Fixed-Price (FFP) and Time & Material (T&M) hybrid contract resulting from this solicitation.

(End of provision)

RFO 52.252-1 Solicitation Provisions Incorporated by Reference. (FEB 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es): https://www.acquisition.gov/far-overhaul

(End of provision)

RFO 52.252-5 Authorized Deviations in Provisions. (NOV 2020)

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR chapter 1) provision with an authorized deviation is indicated by the addition of (DEVIATION) after the date of the provision.

(b) The use in this solicitation of any Commerce Acquisition Regulation (CAR) (48 CFR chapter 13) provision with an authorized deviation is indicated by the addition of (DEVIATION) after the name of the regulation.

(End of provision)

CAR 1352.215-72 Inquiries. (APR 2010)

Offerors must submit all questions concerning this solicitation in writing to Andrea Chiodi, Contract Specialist at andrea.chiodi@noaa.gov and Jame Chang, Contracting Officer at jame.chang@noaa.gov. Questions should be received no later than 3:00PM ET, October 23, 2026. Offerors shall submit all questions and comments using Attachment J-12, Questions and Comments Template. Phone inquiries are not permitted. Any responses to questions will be made in writing, without identification of the questioner, and will be included in an amendment to the solicitation. If questions are received, the Government will make every attempt to answer but does not guarantee a response. The Government responses to these questions will be a courtesy response, and the answers will not be binding or provided as a formal amendment to the RFP. If required, changes will be made directly to the RFP attachments, released via an RFP amendment.

(End of clause)

CAR 1352.233-70 Agency protests. (APR 2010)

(a) An agency protest may be filed with either: (1) The contracting officer, or (2) at a level above the contracting officer, with the appropriate agency Protest Decision Authority. See 64 FR 16,651 (April 6, 1999).

(b) Agency protests filed with the Contracting Officer shall be sent to the following address:

Jame Chang
National Ocean and Atmospheric Administration
Acquisition and Grants Office

Phone: (301) 628-1332
Email: jame.chang@noaa.gov

(c) Agency protests filed with the agency Protest Decision Authority shall be sent to the following address:

Sally Bockh
National Ocean and Atmospheric Administration
Acquisition and Grants Office
Phone: (301) 628-1367
Email: sally.bockh@noaa.gov

(d) A complete copy of all agency protests, including all attachments, shall be served upon the Contract Law Division of the Office of the General Counsel within one day of filing a protest with either the Contracting Officer or the Protest Decision Authority.

(e) Service upon the Contract Law Division shall be made as follows: U.S. Department of Commerce, Office of the General Counsel, Chief, Contract Law Division, Room 5711, Herbert C. Hoover Building, 14th Street and Constitution Avenue, NW., Washington, DC 20230. FAX: (202) 482-8005.

(End of clause)

Section M - Evaluation Factors for Award

M.1 Best Value Evaluation

(a) Award will be made to the offeror: whose offer conforms to the solicitation requirements; who is determined responsible in accordance with RFO Subpart 9.1 by possessing the financial and other capabilities to fulfill the requirements of the contract; and whose proposal is judged, by an integrated assessment of price/cost and non-price evaluation factors, to provide the best value to the Government in accordance with Section M.2, Evaluation Criteria.

1. Prior to award, the Contracting Officer will make a responsibility determination that will include a financial review of the apparent successful Offeror only. This review will include assessing the financial resources available to the apparent successful Offeror to perform its contractual obligations. Financial condition and capability statements made by the Offeror, as well as any additional data available to the Contracting Officer, regardless of whether or not it was provided by the Offeror, may be evaluated as part of the Contracting Officer's responsibility determination. The Contracting Officer shall follow the procedures in RFO Subpart 19.204, if insufficient information is available to determine responsibility of the apparent successful offeror.

(b) The Government intends to award a single contract in response to the solicitation. The Government reserves the right not to award a contract depending on the quality of the proposals submitted and the availability of funds.

(c) Evaluation of Proposals.

1. Initial Evaluation of Proposals. All offers received will be evaluated in accordance with the stated evaluation factors. The Government intends to evaluate proposals and award a contract without negotiations with offerors (except clarifications as described in RFO 15.202(a). Therefore, the offeror's initial proposal should contain the offeror's best terms from a cost or price and technical standpoint. The Government reserves the right to conduct negotiations if the Contracting Officer later determines them to be necessary. If the Contracting Officer determines that the number of proposals that would otherwise be in the competitive range exceeds the number at which an efficient competition can be conducted, the Contracting Officer may limit the number of proposals in the competitive range to the greatest number that will permit an efficient competition among the most highly rated proposals, as described in RFO 15.204-1.
2. Negotiations/Final Proposal Revisions. The Contracting Officer will engage in negotiations with all offerors in the competitive range in accordance with RFO 15.204-1. At the conclusion of negotiations, a final common cut-off date for submission of final proposal revisions will be established. Those offerors remaining in the competitive range will be notified to submit Final Proposal Revisions.
3. Final Evaluation of Offers. A final proposal evaluation will be performed after receipt of Final Proposal Revisions.

M.2 Evaluation Criteria

Upon receipt of proposals, the CO and CS will review each proposal's compliance with the solicitation Section L instruction requirements. If any proposal does not meet the RFP instruction requirements, the CO will determine how to proceed, seeking legal advice if necessary. Proposals not compliant with Section L may be excluded from further consideration. The Government will evaluate Factor 1 (Technical Approach) on the written proposal, Factor 2 (Management Approach) based on a combination of an oral presentation and written proposal and Factor 3 (Past Performance) based on the written proposal and other past performance information sources

The Government will evaluate three (3) non-price factors which are listed below in descending order of importance as well as price.

(a) Non-Price Factors:

1. Technical Approach
2. Management Approach
3. Past Performance

(b) Price

In determining which proposal provides the best value to the Government, Non-price factors, when combined, are approximately equal to price. However, as the non-price evaluation ratings of offers become equal, Price may become more important. Based upon the results of the integrated assessment of the non-price and price proposals, the Government intends to use the Best Value, Tradeoff process to evaluate proposals and may make an award to other than the lowest-priced offeror or the offeror with the highest technical score if the source selection official determines that to do so would result in the best value to the Government.

Non-price Factor 1 – Technical Approach.

The Government will evaluate the Offeror's technical approach as described in the Offeror's written proposal to determine the Government's level of confidence that the Offeror will be able to successfully perform the requirements based on the Offeror's described Technical Approach based on their demonstration of all required elements in Section L.6.6.

Non-Price Factor 2 – Management Approach.

The Government will evaluate the feasibility, effectiveness, and risk of the Offeror's Management Approach based on their demonstration of all required elements detailed in Section L.6.7.

Specifically, the Government will assess the extent to which the oral presentation and associated documentation provide a sound, comprehensive strategy for staffing, labor relations, operational coverage, transition, and contingency planning. Requirement (A) regarding active Facility Clearances will be evaluated on a strictly pass/fail basis. Failure to hold the required active Facility Clearance will result in the offeror being deemed ineligible for award and removed from further consideration.

The slidedeck will be evaluated for its content to ensure it aligns with the delivered Oral Presentation. Inconsistencies between the slides and Oral Presentation may reduce the Government's confidence for

the factor.

Non-Price Factor 3 – Past Performance.

The Government will evaluate Past Performance to establish a Performance Confidence Assessment rating. Using the baseline relevancy as defined in Section L.6.8, the Government will evaluate the quality of the Offeror's performance (via CPARS, PPQs, and other sources) to predict the Offeror's anticipated successful performance under the contemplated contract. A high-quality performance record on highly relevant work will result in a higher confidence rating than high-quality performance on somewhat relevant work.

Price.

Separately and apart from the technical evaluation, the Government will conduct a price evaluation of the Offeror's price proposal in accordance with FAR Subpart 15.202. A price analysis will be conducted to determine if proposed prices accurately reflect the work to be performed.

The price proposal will be evaluated for fair and reasonableness as well as any unbalanced pricing. Proposed prices will be evaluated but not scored.

To be determined complete, the offeror's price proposal must include the documents specified in Section L.6.9. Because the Government provides a fixed staffing profile and labor mix in the pricing template, the Government will verify that the price proposal strictly adheres to this prescribed baseline. Furthermore, the Government will verify that the proposed wages, fringe benefits, and indirect rates built into the pricing template are compatible with the specific recruitment, retention, and incumbent capture strategies described in the non-price volumes.

The Government will calculate the total evaluated price for each offeror by adding the offeror's proposed prices for the base period and each option period (which includes the Government provided not to exceed amounts for the time and material CLINs). NOAA will also add the option price associated with FAR 52.217-8 by using half of the proposed price for Option Year 4.

Price is an equally important evaluation factor for award; the degree of importance of the offeror's total proposed price is anticipated to increase with the degree of equality of the proposals, when evaluated for other factors.

Any proposal that is materially unbalanced as to the proposed prices for the basic and option items may be rejected as unacceptable.

M.3 Innovative Procurement Techniques

This solicitation encompasses several innovative procurement techniques. To increase transparency of them with industry, they are listed in the bullets below. The Periodic Table of Acquisition Innovations (PTAI) PDF Playbook (as well as the website – The Periodic Table of Acquisition Innovations (PTAI)! | Acquisition Gateway), includes a full tile sharing the description, problems solved, benefits of use, small business benefit, and real sample documents, which may include training aids, for each.

- Oral Briefing
- Communicating Innovative Techniques with Industry
- Confidence Ratings
- On-the-Spot Consensus

RFO 52.212-2 Evaluation-Commercial Products and Commercial Services. (NOV 2021) (Deviation JAN 2026)

(a) Evaluation factors. The Government will award a contract resulting from this solicitation to the responsible Offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The following factors will be used to evaluate offers:

See paragraph M.2.

(b) *Options (if applicable)*. The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. The evaluation of options does not obligate the Government to exercise the option(s).

(c) *Notice of award*. A written notice of award or acceptance of an offer furnished to the successful Offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

(End of provision)

RFO 52.217-5 Evaluation of Options. (JUL 1990) (Deviation JAN 2026)

Except when it is determined in accordance with FAR 17.202(b) not to be in the Government's best interests, the Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. Evaluation of options will not obligate the Government to exercise the option(s).

The Government will calculate the option to extend services, provided under FAR 52.217-8, by dividing the offeror’s Option Period 4 proposed price by two (2).

(End of provision)